

**BEST EVIDENCE, BEST DECISIONS: AN EVALUATION OF INQUISITORIAL AND
ADVERSARIAL SYSTEMS AMONG ADMINISTRATIVE TRIBUNALS
IN BRITISH COLUMBIA**

Major Research Paper

by

HUGH TRENCHARD

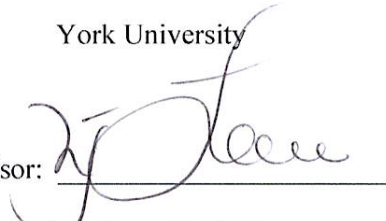
Master of Laws (Administrative law) candidate

218350538

Osgoode Hall Law School

York University

Supervisor:



Nora Farrell, Ph.D.

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Abstract: The historical legal and cultural foundations for inquisitorial and adversarial approaches to procedural justice are reviewed. The inquisitorial-adversarial spectrum is discussed and specific examples of various models are situated on this spectrum. Results obtained from my original research are discussed in which British Columbia administrative tribunals were surveyed for their approaches to the admission of evidence from disputants and the extent to which adjudicators assist parties to present all relevant evidence for adjudicators to make their best decisions. There was a small response rate, so it is impossible to draw general conclusions about where administrative tribunals in British Columbia are situated on the inquisitorial-adversarial spectrum. Nonetheless, the responses provide insight into adjudicators' approaches to the admission of parties' missing evidence, and it is possible to make some general policy recommendations. A "best evidence" model that goes beyond active-adjudication and incorporates elements of existing approaches and the 1983 West-German inquisitorial model is recommended.

Table of contents

1.	Introduction.....	3
2.	The inquisitorial-adversarial spectrum.....	6
3.	Origins of procedural fairness and the inquisitorial and adversarial approaches.....	12
4.	Factors that affect procedural fairness.....	13
5.	The 1983 West German model.....	20
6.	Best evidence principle.....	22
7.	Access to justice.....	24
8.	Self-represented litigants.....	26
9.	Expert reports and adversarial allegiance.....	27
10.	Administrative tribunals in British Columbia.....	35
11.	Role of the registrar.....	36
12.	Research Study – Methodology and Number of Responses.....	37
13.	Summary of adjudicators' responses.....	39
14.	Registrars' responses.....	48
15.	Discussion/analysis.....	50
16.	Directions for further research.....	57
17.	Recommendations.....	57
18.	Conclusion.....	65
19.	References.....	68

1. Introduction

One hallmark of a civilized society is its capacity for citizens to resolve disputes through systematic and predictable processes that are grounded in truth-seeking principles. These processes for resolving disputes are matters of procedural law, while underlying principles which establish the rights and responsibilities of persons are matters of substantive law (Main, 2010, p. 810).¹

As normative² components of law, substantive and procedural law are foundational to most modern states' conception of law in general (Donovan & Roberts, 2006). Situated upon this foundation are two main pillars of law: public law and civil law. Taxation, administrative, criminal and constitutional law are branches of public law (Law & Martin, 2003), while civil law consists of several sub-branches which concern disputes between private citizens. Administrative law governs the resolution of disputes related to the exercise of state authority (Blake, 2017, pp 3-4). Administrative law and civil law share a standard of proof, namely the balance of probabilities, versus proof beyond a reasonable doubt in the criminal context (Blake, 2017, p. 72).

This paper focusses on the relative merits and application of inquisitorial and adversarial approaches to procedural fairness and how they are applied by administrative tribunals in British Columbia. Given the shared standard of proof between administrative law and civil law procedures, this analysis involves aspects of civil law, while I also refer occasionally to aspects of criminal law for context and contrast.

¹ Main, T.O. (2010) describes the difference: “substance and procedure represented conceptual opposites—substantive laws detailed the rights and responsibilities of the parties, and procedures prescribed the vindication of those rights and the fulfillment of those responsibilities.” (p.810).

² “Normative” is defined in this paper as ‘generally prescribed standards of human conduct that are not immutable and are subject to philosophical debate and may change in different social, political and cultural contexts’.

Firstly I begin by defining inquisitorial and adversarial approaches and establishing a continuum between these two theoretical extremes between which other hybrid models may be identified. In this paper I use ‘hybrid’ to describe mixed models which exhibit characteristics of both inquisitorial and adversarial processes which are situated anywhere between the inquisitorial and adversarial models on the inquisitorial-adversarial spectrum. An “active-adjudication” model, to be discussed further, is a type of hybrid model.³ For instance, hearings by written submission may represent a hybrid model, but because there is no opportunity for cross-examination (although adjudicators may sometimes seek written clarifications), hearings by written submission are not easily characterized as involving active adjudication.

I then review the origins of the inquisitorial and adversarial models. I consider the theoretical background for the differences between them and review their defining characteristics. In this context, I consider cultural and other factors which ground national and institutional preferences for one model over the other. Following this, I examine the approaches in the context of matters of access to justice and consider self-represented litigants and how their increasing presence as parties to civil and administrative hearings may have an impact on procedural fairness generally in civil and administrative law contexts.

Central to this discussion is the notion of “best evidence, best decisions”. The fairness concern is that adjudicative decision-making under an adversarial approach is often based on an absence of probative evidence, the outcome of which tends to work against the party who does not adduce that evidence. This is antithetical to justice in the sense that justice can surely be achieved

³ Note that my usage of “hybrid” is somewhat broader than how Green & Sossin (2013) use the term. Green & Sossin apply the term more narrowly such that a hybrid hearing involves primarily adversarial processes but permit for the tribunal to lead the questioning process (p.74).

only if the truth, not victory (Frankel, 1975),⁴ is distilled from the claims and defences that parties advance in their own interests.

In this paper I take the position that an inquisitorial model, indeed one that goes beyond active adjudication and is something of a modified 1983 West German inquisitorial model, as shall be discussed further, best facilitates the introduction of all probative evidence that permits for the most accurate and just decisions.

I then present the results of my original research involving procedural practices among a number of administrative tribunals in British Columbia registrars and adjudicators. I first outline the research methodology which involves direct feedback from tribunal registrars and adjudicators from different tribunals, as elicited from them through two online surveys, one for registrars and one for adjudicators. I then present and evaluate the results in terms of the extent to which tribunals and adjudicators in British Columbia apply an inquisitorial or adversarial, or a hybrid approach. Here, a hybrid approach does not imply any specific combination of inquisitorial and adversarial characteristics but could draw more heavily on either inquisitorial or adversarial approaches.

Since the responses to the surveys are relatively few in number, it is not possible to derive clear conclusions or to characterize the results as representative of widespread trends. The study is therefore a small-scale one. Nonetheless, even as a small-scale study, the survey responses received do reveal some adjudicator tendencies from which it is possible to identify areas of concern and to make recommendations for how tribunals could modify their approaches to

⁴ This view was well-stated by American Judge Frankel (1975): “The business of the advocate, simply stated, is to win if possible without violating the law...His is not the search for truth as such. To put that thought more exactly, the truth and victory are mutually incompatible for some considerable percentage of the attorneys trying cases at any given time.” (p.1037).

improve fairness and access to justice for parties seeking adjudication of their disputes through various tribunals in British Columbia.

2. **The inquisitorial-adversarial spectrum**

An inquisitorial process may be defined as one in which a decision-maker assumes a proactive role in identifying the issues, gathering evidence, and controlling the proceedings and participation of the parties; whereas, an adversarial process is one in which each litigant presents his or her own case and attacks the opponent's case, frequently through a representative, while the decision-maker is impassive and decides the case solely on the evidence and arguments as presented by the parties (Thomas, 2013).

The nature of the inquisitorial process in this context involves dispute adjudication, which is distinct from a different form of inquisitorial process in which a governmental agency conducts investigations and provides a report to an investigated party who may make submissions on that report. In that case there are only two parties: the investigating agency and the party receiving the report; and the investigating agency does not have an adjudicative role in these circumstances (*British Columbia (Minister of Health) v. Eastside Pharmacy Ltd.* 2022, para 60). This is similar to the role of Canadian ombuds offices whose duties are fact-finding in nature and designed to be non-adversarial, as well as public inquiries which are of a similar nature (Jacobs & Baglay, 2013, p.2; Farrell, 2013, p.331).

Administrative tribunals engage procedural fairness along a continuum or spectrum of approaches. This spectrum reflects the degree of control exercised by the parties over pre-hearing litigation procedures and the hearing itself. At one extreme is a purely inquisitorial approach in which the parties have no control over the process for which evidence and submissions are adduced; the decision-makers and their institutional offices exercise complete control over the

hearing procedure and the introduction of evidence and submissions by the parties (Thibault & Walker, 1975, p 22).

At the other extreme are bargaining processes which are controlled entirely by the parties (Thibault, Walker, LaTour, & Holden, 1974, p. 1275). Here we assume a bargaining process that results in an enforceable contract that binds parties to the outcome. This is distinguished from mediation in which parties are typically free to reject the outcome if the parties are not mutually satisfied.⁵

Between these two extremes Thibault *et al.* (1974)⁶ describe three additional models (p.1273-1275).

- a. The single-investigator model, in which a somewhat activist decision-maker is assisted by an investigator, employed by the decision-maker body, whose mandate is to seek the truth impartially.
- b. The double-investigator mode, in which a less activist decision-maker is assisted by two investigators, each of whom are employed by the decision-maker and assigned to

⁵ See for instance, *Law and Equity Act*, Notice to Mediate (General) Regulation, B.C. Reg. 4/2001, and the Form 5 Certificate of Completed Mediation which indicates whether or not any issues have been resolved. Also, in Saskatchewan, effective July 1, 2022, family law disputants will be mandatorily required to attempt non-binding mediation <https://www.saskatchewan.ca/residents/births-deaths-marriages-and-divorces/separation-or-divorce/early-family-dispute-resolution/family-mediation>

⁶ I have cited scholarship from the 1970s extensively because Thibault and Walker and affiliated authors were pioneers in the analysis of how individuals perceive differences in fairness as between inquisitorial and adversarial processes. While there is a significant body of literature that seeks to replicate their research methodology designed to understand these perceptual differences between inquisitorial and adversarial processes, I have largely relied on the early progenitor research in this respect because this research established the methodology and analysis in this subject area, much of which was cited later but only modified incrementally. Similarly, in terms of the models I have positioned on the inquisitorial-adversarial spectrum, the models that Thibault and Walker have identified represent the best benchmarks I have found for the purposes of my research by which to situate models among tribunals in British Columbia (see Figures 1 and 2).

investigate and report to the decision-maker the facts pertaining to each respective side of the dispute.

- c. The adversarial system in which the processes are controlled largely by the disputants, frequently represented by openly biased lawyers or advocates, while the decision-maker remains comparatively passive.

As an example of a single-investigator model, Thibault *et al.* (1974) identify the National Labor Relations Board (United States) in which a hearing examiner is commissioned to investigate disputes and make detailed reports to the decision maker (p.1274).

Professional disciplinary boards approximate a single-investigator model in which a decision-maker commissions an investigation into the conduct of the person under citation and provides a presumably unbiased report to the decision-maker (e.g. B.C. Commissioner for Teacher Regulation, Commissioner's Rules, 2015, Rules 30-32). In professional disciplinary matters, the person under citation has an opportunity to respond to allegations through legal counsel (B.C. Commissioner for Teacher Regulation, Commissioner's Rules, 2015, Rules 42, 48 62), so in this respect the process is adversarial. However, where authorized the noted investigation report is carried out by the office of the decision-maker, unlike for instance a criminal investigation carried out by an independent police agency, the results of which are presented by a public prosecutor before an independent judiciary.

In this example, the Commissioner for Teacher Regulation is authorized to undertake further investigations as a result of a response to an initial investigation made by the person under citation (B.C. Commissioner for Teacher Regulation, Commissioner's Rules, 2015, Rule 32). This procedure is not typical of an adversarial approach in which the parties are obliged to gather all

the evidence they intend to rely upon prior to the hearing and to present their evidence to a decision-maker who otherwise was not involved in gathering evidence.

To a lesser degree, another example of a single-investigator model is the British Columbia Civil Resolution Tribunal (*Civil Resolution Tribunal Act*, 2012, s.23(b) and (c)) which employs case managers who review the claims in a dispute and assist the parties in identifying the facts relevant to resolving the dispute, and in determining the evidence that will assist adjudicators in resolving the dispute. Case managers may also recommend to the tribunal the appropriate process to be used in hearing the dispute (*Civil Resolution Tribunal Act*, 2012, s.23(d)).

As an example of the double-investigator model, Thibault *et al.* (1974) identify the United States Court Martial tribunal as mandating the use of separate investigators assigned to investigate each side of a dispute (p. 1274). In the Canadian context, I have not been able to identify any tribunals using this system. However, such a model is contemplated by the British Columbia *Administrative Tribunals Act* (2004) under which a tribunal chair may engage or retain consultants, investigators, lawyers, expert witnesses or other persons the tribunal considers necessary (*Administrative Tribunals Act*, 2004, s. 27). These broad powers appear to permit separate investigators to investigate each side of a dispute and to report findings to the tribunal panel.

Adversarial proceedings, in their extreme form, involve passive decision-makers who may, to some extent, control the conduct of the hearings through pre-hearing case management processes (Reynolds, 2022, p.493; Green & Sossin, 2013, p. 75) but do not seek to adduce evidence from the parties, who alone are responsible for presenting their best case based on their evidence and argument. In this respect, the parties are adversaries who do nothing to assist each other. In fact, parties typically do their best to undermine each others' respective cases through rigorous

cross-examination and pre-hearing tactics that may discourage their adversaries from prosecuting their cases from the outset.

To this list of models I add the “active adjudication” model proposed by Green and Sossin (2013), a hybrid model that occupies the mid-region on the continuum between inquisitorial and adversarial extremes (Green & Sossin, 2013). This model involves a number of flexible processes in which decision-makers: guide the introduction of evidence through early disclosure to the tribunal including suggesting, but not directing, additional areas or witnesses to be called; focus the issues through use and application of the parties’ information as well as decision-makers’ own expertise; elicit and test witnesses’ testimony and ensure that disputants obtain meaningful tribunal access to tribunal rules and procedures, practices and the conduct of hearings (Green & Sossin, 2013, p. 72).

Active adjudication is both non-adversarial and non-inquisitorial (Green & Sossin, 2013, p.75). In terms of its non-inquisitorial nature, active adjudication prioritizes “problem-solving” over truth-seeking (Green & Sossin, 2013, p.75). Arguably, however, truth-seeking on the basis of the best evidence, to be discussed further, is fundamental to adjudicative processes. For this reason and others, this paper takes the position that active adjudication is insufficient and a more inquisitorial approach that acknowledges the primacy of truth-seeking is preferred.

Active adjudication may be situated centrally on the continuum, somewhat closer to adversarial processes than either the single-investigator or the double-investigator models, as shown in Figure 1. In those cases, assuming the investigators fulfil their roles impartially and reasonably to the best of their abilities, investigators fulfil the truth-seeking function which is missing from the adversarial approach.

Similarly, under the single-investigator model, decision-makers are moderately activist (Thibault *et al.*, 1974, p. 1274) and may exercise additional procedural flexibilities in terms of accessible pre-hearing and hearing procedures and eliciting evidence. Under the double-investigator model, decision-makers rely on investigators to obtain the probative evidence from the parties and witnesses. Thus, the decision-maker's flexibility to seek the evidence him or herself is limited. However, under these models the decision-makers and the parties seem to enjoy assurances not found under adversarial processes that the best evidence comes before the decision-makers. Thus, it is reasonable to situate the double-investigator model to right of the single-investigator model but to the left of the active-adjudication model, roughly as shown in Figure 1.

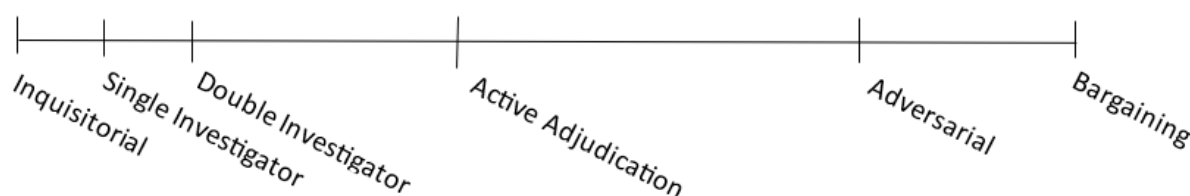


Figure 1. The spectrum of adjudication models based on the author's research of secondary literature (scale approximate).

While binding arbitration is implicitly considered within this continuum, non-binding arbitration and mediation processes are not included. Although the degree of third-party intervention through non-binding arbitration and mediation varies similarly (LaTour, Houlden, Walker, & Thibault, 1976) to the processes set out in the adjudication spectrum, such dispute-resolution mechanisms are distinct in the sense that the control variable lies not with procedural variability, but instead with outcome or decision control, i.e., disputants are free to reject non-binding recommendations, which should not be confused with or described as actual 'decisions'. In that case, if a dispute remains, the parties may then proceed to legally enforceable judicial/administrative processes.

3. **Origins of procedural fairness and the inquisitorial and adversarial approaches**

For eons cooperation has contributed substantially to human proliferation as a social species (Walsh, 2000, p.848). Arguably, principles of procedural fairness which underlie the resolution of disputes between persons may be traced to basic natural evolutionary forces such as this innate human propensity to cooperate for various reasons (Walsh, 2000, p. 869). In this sense, rules and systems of procedural fairness do not emerge solely as human constructs but are grounded in natural behavior and biological systems. Similarly, societal systems that establish orderly procedural rules to ensure that aggrieved persons receive a reasonable opportunity to advance claims they have against others or to defend themselves against such claims, shift society away from systems in which disputes are settled by vengeance or tit-for-tat blood feuds (Walsh, 2000, p. 855), which may originate from other natural human tendencies toward violent conflict (Dawson, 1996).

These notions of natural law may be traced to Ulpian, a Roman legal scholar, who stated, “Natural law is what nature taught all animals. For this law is not peculiar to the human race but common to all animals that are born on land or sea and to birds” (Eichbauer, 2014, p. 77). Centuries later, scholars such as St. Thomas Aquinas in the 13th century, Thomas Hobbes and John Locke in the 17th century, argued that procedural rights are grounded in nature, albeit more in terms of the “laws of God” and immutable human rights (Shauer, 1976, pp. 49-51) than in terms of evolutionary and biological principles. It is upon these conceptual foundations that the notion of “natural justice” emerged (Shauer, 1976, p. 49) as constitutionally protected rights that are now enshrined within Section 7 of the *Canadian Charter of Rights and Freedoms* (1982) as a component of fundamental justice.⁷

⁷See also *Re B.C. Motor Vehicle Act*, [1985] 2 S.C.R. 486, paras 62-67.

4. **Factors that affect procedural fairness**

Procedural fairness is both objective and subjective: objective procedural fairness involves its evaluation according to standard generally accepted criteria, whereas a subjective analysis involves persons' personal perceptions of fairness (Vidmar, 1990, p. 878-879). Indeed, there is evidence that persons are more likely to comply with state regulations and court processes if they *feel* they are treated fairly (Tyler, 2003, p. 286, 296). Similarly, perceptions of fair treatment are often more important than the outcome of a dispute resolution process (Burdziej, Guzik, Pilitowski, 2018, p. 360, 361).

Arguably, both elements must be present to achieve truly fair outcomes and any analysis of these respective criteria in isolation from each other is bound to result in arbitrary approaches. On one hand, objective fairness can hardly be fair if reasonable participants in a dispute-resolution process do not feel the process was fair. On the other hand, just because a participant feels he or she was treated unfairly, this does not necessarily mean the process was in fact unfair when scrutinized according to objective criteria.

Thus, when considering the relative merits of an inquisitorial approach to administrative decision-making versus an adversarial one, it is useful to consider the interplay between objective and subjective factors. In this vein, it is useful to consider approaches to procedural fairness in different historical, cultural and political contexts. A well-informed contextual understanding of procedural fairness assists us to recognize how and why it may or may not be desirable to recommend changes to the *status quo* in Canada in terms of civil procedure, and more specifically in the context of administrative decision-making in Canada and British Columbia.

Historically and cross-nationally, approaches to procedural fairness vary considerably according to culture and political predispositions. For instance, Chinese perceptions of procedural

fairness were found to be heavily influenced by a prevailing culture of traditionalism and respect for authority in which certain inequities are acceptable – in these circumstances, Chinese citizens may be less sensitive to unfair treatment (Wang, Hackett, Cui, Zhang, 2012, p.355). Similarly, in China, collectivist ideals tend to lead to a preference for bargaining processes over either adversarial or inquisitorial ones (Leung, 1985).

In socialist Soviet-era Russia,⁸ decision-making processes were tied to an institutional objective to protect the existing socialist economic and social order, and a judge-led inquisitorial approach was consistent with this objective (Thibault & Walker, 1975, p. 25). Historically, this has been true for Eastern European countries in general (Thibault & Walker, 1975, p. 25).

A 2003 study involving Russian lay judges, who assist professional judges rather like jurors in both criminal and civil cases (Machura, 2003, 146), supports the notion that Russians share criteria for the state's fair treatment of citizens with Americans and western Europeans (Thibault & Walker, 1975, p. 128, 146). While this does not by itself point to the cultural or political basis for such sentiments, nor does it indicate whether citizens prefer an inquisitorial system over an adversarial one, it does suggest there may be some changing attitudes in light of shifting national and cultural identities that occurred in post-Soviet Russia in the 1990s (Likhacheva, 2015).

Historically, continental western European nations like France, Italy and Germany have also preferred inquisitorial litigation approaches (Spencer, 2016, pp.601-605; Goldstein & Marcus, 1977).

The Danish have been shown to prefer inquisitorial systems (Anderson & Otto, 2003, p.558). In their study involving Danish and American participants, Anderson and Otto (2003)

⁸ For an overview of Russian socialism see, Malia, M. (2008). *The Soviet Tragedy – A History of Socialism in Russia, 1917-1991*. Maxwell Macmillan Canada.

postulate two possible explanations for this: people prefer the system that is most familiar to them, as suggested by Lind, Erickson, Friedland, and Dickenberger (1978), or their respective preferences are culturally influenced (Anderson & Otto, p 562).

The origins of inquisitorial approaches in Europe may be traced to Roman law as introduced into Norman (French) and Frankish (Germanic) law (Janin, 2004, p.55, 93-94, 149). The Normans introduced their inquisitorial model in England in the latter half of the 11th century (Thayer, 1898, p.50). This model was applied originally in the context of both criminal and civil disputes; civil disputes often involved issues of land titles, taxable capacity and status of persons, as records from the Domesday book from 1085-86 in England show (Thayer, 1898, p.51).

The dichotomy between adversarial and inquisitorial approaches may be traced to at least as far back as 9th century, in which historical records indicate that under Norman and Frankish law, only the royal authorities had the power to compel witnesses to attend hearings and compel them to take an oath, whereas under community courts it was left to the parties to bring forward witnesses (Thayer, 1898, p.49).

Studies involving American subjects indicate that Americans tend to prefer adversarial systems (LaTour, 1978). In the Walker, Latour, Lind, & Thibault (1974) study involving 99 students from an east-coast American university, the authors identified that one of the most important procedural principles is that both sides be represented by legal counsel, including both criminal and “major” civil matters (Walker *et al.*, 1974, p. 296). According to their study, the authors found that adversarial representation tended to produce greater trust and satisfaction with litigation procedures among parties independently of the judgment whether favorable or not, when compared with inquisitorial approaches (Walker *et al.*, 1974, p. 309). Similarly, Thibault & Walker (1975) found that adversarial systems tended to counteract decision-makers’ pre-formed bias, or

the tendency to judge too swiftly, toward one side or another more than inquisitorial systems (p. 49 – 52).

Walker *et al.*'s (1974) study presumes that parties have legal representation for which, although it is a constitutional right in criminal matters and persons under state detention (*R. v. Manninen*, 1987, pp.1242-1243) generally there is no right in Canada to counsel for civil disputants (*Christie v British Columbia (Attorney General)*, 2007) except in very narrow civil contexts such as child protection matters (*New Brunswick (Minister of Health and Community Services) v G (J)*, 1999). Legal representation appears to be an assumed criterion for adversarial systems (Thibault & Walker, 1975, p. 42),⁹ certainly among the American researchers of the 1970s. Indeed, a more recent study by Sevier (2014) which confirmed Thibault and Walker's (1978) findings, involved exclusively American participants and also assumed that adversaries were represented by lawyers (Sevier, 2014, p 223).

As in civil and especially administrative settings, parties are often not represented by lawyers, it would be useful to see examine if American perceptions of the fairness in an adversarial setting may be different if presented with a scenario in which a defendant or accused is self-represented. Similarly, some studies indicating Americans' preference for an adversarial system have been criticized for presenting the inquisitorial system as failing to provide disputants an opportunity to make submissions on their own cases, which is not actually the case (Anderson & Otto, p. 558).

There are strong indicators that roles and gender influence perceptions of procedural fairness. For instance, Sweeney and McFarlin (1997) studied the importance that women and men

⁹ Thibault & Walker (1975) state that: "In an adversary system two additional persons are present to represent the subjects of the process and present evidence and information to a passive decision maker."

place on procedural and distributive justice (decision outcomes). They found that distributive justice was more important for men compared with women, and that procedural fairness was more important for women than men in the context of whether the subjects would remain with a workplace organization (Sweeny & McFarlin, 1997, pp. 88-91).

Tata (2000) made a similar finding in the context of men's and women's perceptions of the fairness of pay raises in the workplace. Tata (2000) found that differences in these perceptions between genders may result from differential emphasis on distributive and procedural justice, and that men were more likely to emphasize distributive justice than procedural justice principles when evaluating pay raises. Explanations include that women may be more sensitive to cultivating co-worker relationships than men; women tend to rely on formal procedures to obtain organizational objectives due to historical discrimination that has barred them from important decision-making processes (Sweeny & McFarlin, 1997, p. 85). Although these studies did not differentiate between inquisitorial and adversarial approaches to procedural fairness, they point to some causes for differences in perceptions of fairness. These findings demonstrate that there are no universal criteria for what constitutes both objective and subjective procedural fairness and underpin the notion that procedural fairness should be flexible and modifiable according to circumstances.

Lind *et al.* (1978) similarly found that subjects of four nations, United States, United Kingdom, France and West Germany, preferred an adversarial approach (p. 321). This is despite the authors' hypothesis that French and West Germans might be expected to prefer an inquisitorial approach because they were likely familiar with this model. This led Lind *et al.* (1978) to suggest that the general preference for an adversarial approach among participants from all four nations may be due to a general desire for increased process control that is independent of the societal systems in which they operate (p.336). Arguably, this finding may also be traceable to Western

individualism, in contrast to more collectivist cultures.

Here again, however, Lind *et al.*'s (1978) research scenario may be criticized for assuming that parties are represented by legal counsel, which does not reflect 21st century reality. Also, Lind *et al.*'s (1978) study focuses on criminal prosecutions in which liberty interests are at stake on a beyond-a-reasonable-doubt standard of proof and does not involve a typical civil dispute let alone a less formal administrative proceeding.

Contemporaneously to Lind *et al.*'s 1978 study, Thibault and Walker (1978) considered the then growing body of research on procedural approaches to conflict resolution and developed a theoretical framework that outlined the factors defining when disputants tend to prefer either inquisitorial or adversarial approaches.

These researchers identified two overarching objectives to conflict resolution in general for which different procedural approaches apply: truth and justice. In terms of truth, factual accuracy dominates the inquiry. According to this framework, an inquisitorial approach is more appropriate to determine factual accuracy. In terms of justice, the fair distribution of assets or apportionment of outcomes – elements of distributive justice – dominates the inquiry. To achieve distributive justice, Thibault and Walker (1978) suggested that the input parameters involved in determining fair resource distribution are best determined through an adversarial approach (pp. 541-545). In this respect, disputants usually possess the most information and understanding about the inputs that affect their view of appropriate resource allocation (Thibault & Walker, 1978, p 549). Thus, it is reasonable that disputants prefer to control how that information is reported to a decision maker.

Thibault and Walker (1978) suggested that there is an underlying psychological principle which governs why disputants are best positioned to control the distributive justice process.

Specifically, their suggestion is that distributive justice inherently involves normative values, the relative importance of which may differ between a decision-maker and the disputants or which may be colored by biases. In this respect, a decision-maker who leads an inquiry cannot necessarily be relied upon to elicit the normative factors that are most important to the disputant, leaving this role to the disputants who control this aspect of the process (pp. 459-550).

In contrast, where objective facts are in dispute but the disputants themselves may not possess the best evidence of those facts, under the Thibault and Walker (1978) framework, eliciting the accuracy of objective facts is best achieved by the decision-maker, especially in the face of the possibility that disputants may seek to hide certain facts if disputants perceive this to be of strategic advantage to them.

Thibault and Walker (1978) recognize that their preference for an adversarial approach where justice dominates factual accuracy¹⁰ is less tenable in cases in which disputants lack the resources to present their well researched and carefully presented arguments fully (p. 554). In such cases, the authors acknowledge that disputants should be aided in developing their arguments (p. 554). Although Thibault and Walker (1978) do not state this explicitly, this obviously includes cases where disputants cannot afford legal counsel and are therefore self-represented, a current wide-spread reality that is somewhat downplayed in their overall analysis.

¹⁰ In this paper I consider “accuracy” in terms of factual accuracy and not in terms of the correctness of a decision which involves both factual and legal accuracy. At the same time, factual accuracy is more likely to lead to a correct decision than when facts may be missing or somewhat misinterpreted, in which case the decision may not be entirely correct but nonetheless reasonable. My view is that administrative tribunals should strive for factual accuracy such that correct decisions follow. A full discussion of the relative merits of correct versus reasonable decisions, however, is beyond the scope of this paper.

Contemporaneously, Saltzburg (1978), in applying a more legalistic approach than a psychological one, sought to cement the primacy of an adversarial approach by advocating for a limited truth-seeking function among American decision-makers', saying:

When an event is the subject of litigation, there is often no need to determine all of what happened or exactly why it happened. What must be decided are the basic and ultimate questions shedding light on the theories that the legal system recognizes as valid...only material questions, those of consequence to the proper application of the law, must be answered. (Saltzburg, 1978, p. 13)

Thus, Saltzburg (1978) argued that the court does not have an appropriate role in discovering facts that parties may deliberately withhold and who bear the responsibility of determining what is material to their claims (p.12). Again, a fundamental weakness of Saltzburg's argument is that it presupposes that the parties either possess the capacity to make such determinations, or that they are represented by legal counsel who are presumed to possess this capacity, neither of which reflect reality.

5. The 1983 West German model

In his comparatively recent article, University of Victoria lecturer Bradley Bryan (2004) discussed the merits of the 1983 West-German inquisitorial model as described by Langbein (1985). Bryan (2004) opined that Langbein was right that Anglo-American law could draw insight from the West-German model for improvements in procedural justice as an inquiry into truth while safeguarding the rights of the parties (pp. 526-527). Langbein's (1985) articulation of the West-German model is the clearest and most sufficiently detailed model of a purely (or nearly so) inquisitorial system among those I have seen described in the literature. I therefore rely considerably upon Langbein's model as a benchmark for a functional inquisitorial model, elements of which I suggest could be adopted by administrative tribunals in British Columbia.

Under the 1983 West-German model, judges control the fact-finding process in civil

litigation, albeit under the scrutiny and input of the parties' lawyers. Thus, the judge obtains relevant public documents and determines who the witnesses are, all of which information is maintained in a file accessible to the parties' legal counsel (Langbein, 1985, pp. 827-828). The judge develops a sense of the dispute and then initiates a first hearing in which the judge may seek to resolve the issues or may examine some of the witnesses. The judge may select experts from an official list of experts whose allegiance is to the court (Thibault & Walker, 1975, p. 24). There is, however, no official transcript of oral evidence, and the judge dictates summaries of the evidence and argument (Thibault & Walker, 1975, p. 24). The hearing may then be adjourned if further evidence is required (Langbein, 1985, pp. 828-829). Similarly, under the 1983 West German system, experts are selected and engaged by the courts; indeed, experts are not referred to as witnesses but as "judges' aides" (Langbein, 1985, p. 835).

In Anglo-American adversarial systems, there is said to be no ownership in witnesses in general (e.g., *Ross v. Chieftain Insurance*, 2021, para 28) but it is nevertheless the parties' respective responsibility to determine who they intend to produce as witnesses at a hearing and parties typically do so on the basis that only the particular witnesses identified support their respective positions. However, even "un-owned" witnesses may not be objective because they have some relationship with the party who calls the witness (such as an employment relationship) under which pressure on the witness to give evidence favorable to the party calling them naturally exists. While a 1983 West-German-type judge-led inquiry does not alter relationships between a witness and the party calling him or her, it may ease the pressure on witnesses to present biased evidence if these witnesses are compelled to testify by the institution of the unaffiliated decision-maker rather than by the party who relies on their evidence.

Under the 1983 West German judicial process, there was no significant distinction between pre-trial and trial procedure; rather, there was one continuous hearing process in which the truth-seeking function was controlled by the judge. Similarly, there was no distinction between the “plaintiff’s case” and the “defendant’s” case (Langbein, 1985, p. 830). Conceptually, this approach is foreign to the Anglo-American approach in which decision-makers, including administrative tribunals, have no role in gathering the evidence that is ultimately revealed to the court or tribunal.

It is useful to note that in 1983 West Germany, judges comprised civil, criminal, and administrative tribunals, with administrative judges comprising somewhat less than one third of the total number of judges in the nation (Langbein, 1985, p. 851). Under the West German system, appeals from administrative decisions were not heard by civil courts, but instead by a separate appellate system specially designated for administrative decisions (Langbein, 1985, p. 851, note 100).

6. The best evidence principle

Central to this analysis is the import of the truth-seeking function of administrative adjudication. Although the parties to a dispute may desire to “win” the contested dispute, victory is not the decision-makers’ concern. A decision-maker is presumably concerned about the truth and the application of the appropriate law to the facts as found to be true. Although the truth may sometimes be determined on the basis of some, but not all, of the available evidence, it must be acknowledged that frequently the truth eludes decision-makers if all probative evidence is not before them.

The best evidence principle historically has meant that where possible, original copies of documents and first-person direct (non-hearsay) evidence is to be preferred over facsimiles which may be altered¹¹ and hearsay evidence which is not subject to cross-examination.^{12 13}

However, in the sense of substantively proving one's case, the best evidence principle is that a party should present "the best evidence reasonably available on a litigated factual issue" (Nance, 1988, p. 227). The application of this principle has substantially different consequences as between an adversarial and inquisitorial approach. Under both approaches, if a party who bears the burden of proof fails to bring forward their best evidence, unwittingly, then that party may fail to discharge their burden. Nevertheless, under an adversarial approach there is no obligation on the court to ensure or even to encourage the parties to bring forward their best evidence.

Indeed, under an adversarial approach, typically each party hopes the other does not present its best evidence and, as a tactical matter, each may seek to impede the other from introducing their best evidence by court/tribunal applications to exclude evidence (Nance, 1991, pp. 835-838). Bryan (2004) observed that many cases are lost long before their merits are ever considered by decision-makers due to the tactical use of such motions to exclude evidence (p.522). In this sense, when relevant evidence is excluded on procedural grounds to the extent that one party no longer has an evidentiary foundation to their case, then justice is hardly being done. In administrative contexts, the prevalence of this practice may be lower due to the reduced presence of legal counsel

¹¹ The rule is no longer strictly applied in Canada: *Kamloops Square Mgmt. Ltd. v. Baron*, 2006, para 15.

¹² For a history of the rule in Canada see *R. v. Lamaree*, 1991 CanLII 2714 (MBCA), p. 4 – 22.

¹³ It is useful to note here that the hearsay rule in administrative tribunals is considerably relaxed. In British Columbia, hearsay in administrative tribunals is allowed subject to the opposing party's opportunity to comment on the evidence and to present evidence to the contrary, and tribunals may afford the evidence due weight accordingly: *Cambie Hotel (Nanaimo) Ltd. v. British Columbia (General Manager, Liquor Control and Licensing Branch)*, 2006 BCCA 119, para 28, 36.

in the first place and also because there are generally fewer procedural tools in place for the exclusion of evidence. However, any presence of legal counsel who are presumably aware of tactical methods to exploit formal legal procedures, means the potential exists for attempts to be made to exclude evidence on purely procedural grounds.

There are also instances in which one party is aware of the existence of evidence that is only available to that party and who deliberately withholds disclosing it, or the evidence is destroyed (Bryan, 2004, pp. 833-834) either deliberately or inadvertently. Similarly, parties may be unaware that other probative evidence exists, or they may overlook probative evidence (Bryan, 2004, pp. 833-834).

7. Access to justice

In Canada, civil litigants have no constitutional right to consult counsel¹⁴ like persons under arrest or detention by the state (*Canadian Charter of Rights and Freedoms*, 1982; *R. v. Sinclair*, 2010, para 2). However, in view of the principle of equality before the law, arguably Canadian governments have a positive constitutional responsibility to guarantee civil litigants have access to justice (Buckley, 2008, pp. 577-582).

Although a constitutional requirement for access to justice appears yet to be clearly articulated by the courts (Cole & Flaherty, 2016), courts have supported in principle the constitutional nature of access to justice (e.g., *Cambie Surgeries Corporation v. British Columbia (Attorney General)*, 2018, paras 24-26). However, courts are reluctant to endorse an argument that certain procedures or regulatory requirements that merely impede or discourage access to justice constitutes an infringement of such a right; rather, an infringement of that right occurs only when

¹⁴ “Counsel” typically includes advocates trained in the law like lawyers and paralegals, but it may also include expert advisors and lay advocates.

the impugned impediment wholly prevents parties from exercising their right of access to justice (*John Carten Personal Law Corp. v. British Columbia Attorney General*, 1997, para 13).

Access to justice is an integral component of a functioning democracy, since without it public confidence in the ability to obtain justice erodes and, in extreme cases, may lead to social unrest (Wagner, 2018). Access to justice goes beyond the basic right to come before the courts to the extent that there is also a right “not to be deprived, in procedural terms, of his/her right to claim justice” (*United Nations GC 32*, 2007). Arguably, this includes a right to understand the law and for sufficiently simplified procedures so as to be understandable and amenable to being followed (Adams-Prassl, A, & Adams-Prassl, J. 2020).

Similarly, in addition to the high costs of legal representation,¹⁵ the high costs of obtaining evidence – particularly expert evidence – represents a barrier to access to justice. Moreover, where experts are necessary, costly motions may be advanced by parties to disqualify experts or to exclude some aspect of the expert’s report. The matter of resource imbalance is particularly acute when one party is self-represented, but it may also occur when both parties are represented by counsel and one party simply has “deeper pockets” by which the investigation and acquisition of relevant evidence are more readily possible (Nance, 1991, pp. 841-845).

Extreme cases of adversarial tactics which may discourage parties from proceeding, also represent impediments to access to justice. Examples include: forms of intimidation and verbal abuse; violated promises regarding disclosure or settlement negotiation; adjournments (Reavley, 1990); proliferating discovery and affidavits and the opposition to these (Garth, 1993, p. 942); refusals to acknowledge scheduling courtesies (Bisceglia, 2008, p. 172), or avoiding setting

¹⁵ The capacity to afford legal counsel is cited as one of the main reasons for litigants choosing to self-represent (Macfarlane, 2013 report, p 42-43).

hearing dates until the latest “reasonable” time; forms of sharp practice such as insisting on service requirements when a simple acknowledgment of receipt of documents sent electronically would suffice and, more overtly, scheduling largely unnecessary applications to dismiss pleadings.¹⁶

8. Self-represented litigants

All the barriers to access to justice identified above are exacerbated for self-represented litigants. In North America and Commonwealth countries, civil litigation is increasingly undertaken by self-represented persons.¹⁷ ¹⁸ The number of self-represented parties is almost certainly higher for litigation before administrative tribunals than general civil litigation, and for many tribunals the presence of self-represented parties is the norm (Flaherty, 2015, pp 120-121).¹⁹

While the growing number of self-represented litigants is increasingly important in the context of access to justice and has been recognized by the Supreme Court of Canada to underpin a responsibility among the courts to promote equal justice when parties are self-represented (*Pintea v. Johns*, 2017, para 4), it is not a new issue in Anglo-American academic legal research. As far back as 1913, American Judge Roscoe Pound well-recognized that the high costs of legal representation led many disputants to avoid seeking judicial resolutions to legitimate, but comparatively small, or “petty” disputes. In this respect, he said:

In petty causes there ought to be no expensive advocacy. One side or the other, unless the game of litigation is played for pure pleasure, cannot afford it. The court, therefore, has no assistance, or adequate assistance. Hence the judge cannot be a mere umpire. He must

¹⁶ These examples of sharp practice are drawn from the writer’s personal experience with civil litigation.

¹⁷ This is especially true of family court but also generally among civil courts, for which estimates are that between 60% and 80% of family/civil litigants in Canada are self-represented (Macfarlane, 2013).

¹⁸ For discussion on the increase in self-represented litigants in Canada, United States, New Zealand, Australia, United Kingdom see: Richardson, Grant, & Boughey (2018).

¹⁹ Flaherty’s (2015) observation is consistent with my personal experience related to hearings involving the B.C. Liquor and Cannabis Regulation Branch in B.C. and liquor/cannabis licensees disputing alleged license contraventions.

actively seek the truth and the law, largely if not wholly unaided. The lay vision of every man his own lawyer, has no place in petty litigation. The alternative is a judge who represents both parties and the law, and a procedure which will permit him to do so effectively. (Pound, 1913, p. 319)

“Petty” disputes in this context equally encompass administrative matters because they often involve disputes for which the cost of counsel exceeds the claimed amounts or do not justify defending against the claims.

Given the long-standing and well-recognized issues regarding self-represented litigants, it is somewhat surprising that many of the early (1970s) American studies about the relative merits of adversarial versus inquisitorial approaches tended to ignore scenarios involving self-represented disputants. It is therefore difficult to avoid speculating that perhaps the researchers themselves harboured a bias in favor of the adversarial approach.²⁰ This skeptical view of American research in this context is not unreasonable given widespread anti-inquisitorial sentiments in American law and among the American legal profession in which “Avoiding inquisitorialism is taken to be a core commitment of our legal heritage” (Sklansky, 2009, p. 1636). Underlying this skepticism is a sense of legal-profession protectionism.²¹

9. Expert reports and adversarial allegiance

Many Canadian jurisdictions provide statutory guidance in relation to the duty of experts in their civil courts (*White Burgess Langille Inman v. Abbott and Haliburton Co.* 2015, para 28). In British Columbia civil courts, experts have a statutory duty to assist the court and are “not to be an advocate for any party” (*B.C. Supreme Court Civil Rules*, 2000, Rule 11-2). Experts may also be appointed by the court (*B.C. Supreme Court Civil Rules*, 2000, Rule 11-5) and parties may

²⁰Adversarial bias may also be present among tribunal members who are trained in the adversarial tradition (Green & Sossin, 2013, p. 86).

²¹ Although beyond the scope of this paper, for further analysis of legal-service protectionism see Dzienkowski & Peroni (2000).

retain joint experts court (*B.C. Supreme Court Civil Rules*, 2000, Rule 11-3). However, parties may also retain their own experts court (*B.C. Supreme Court Civil Rules*, 2000, Rule 11-4), which presumably is done largely for the very reason that parties believe their own expert is more likely to provide an opinion that is favorable to their position (Horton & Mercer, 2004-2005, p. 153). Indeed, independent research studies have shown that experts do tend to exhibit “adversarial allegiance” by providing opinions that favor the side who retained them (Murrie, Boccaccini, Guarnera, Rufino, 2013; Murrie & Boccaccini, 2015).

Moreover, while experts may be subject to a statutory duty to assist civil courts, thus lending some protection against a tendency toward experts’ adversarial allegiance, administrative tribunals are inconsistent with respect to whether experts owe their duty to the tribunal. For example, expropriation compensation disputes which, in British Columbia, were heard by an administrative tribunal, typically involve parties retaining appraisal experts to provide opinions regarding the value of the land expropriated (e.g., *Sequoia Springs West Development Corporation v. HMTQ in Right of the Province of British Columbia as represented by the Minister of Transportation and Highways*, 2006; *Hanlon v. North Vancouver (District)* 2022).²² However, under the former British Columbia Expropriation Compensation Board Practice and Procedure Regulation, no such duty existed in relation to expert evidence (Expropriation Compensation Board Practice and Procedure Regulation, 1987, s.13).²³ This is largely the case for British Columbia tribunals in the present day (Table 1, p. 31), although the use of experts varies

²² Here I specifically identify expropriation litigation because of its notorious reliance on highly disparate expert property valuations.

²³ In 2005, jurisdiction over expropriation compensation claims was transferred to the B.C. Supreme Court: <https://www.courthouselibrary.ca/how-we-can-help/our-legal-knowledge-base/expropriation-compensation-board-bc>.

considerably from tribunal to tribunal. Indeed for some tribunals, they are hardly used at all²⁴ and in those cases the absence of a duty to assist the tribunal obviously has little bearing on matters of fairness.

On the other hand, under the more recently constituted British Columbia Civil Resolution Tribunal (2016) (*CRT Annual Report*, 2017, p.2), experts are vested with a duty to assist the tribunal (*CRT Rules*, 2022, Rule 8.3(7)). This is also the case for the Worker's Compensation Appeal Tribunal (*WCAT Manual of Rules*, 2022, c. 11.6(a)). This duty provides some objective assurance that experts will provide their testimony independently of the parties. However, clearly it does not guarantee that adversarial allegiance will be eliminated if either or both parties pay for the expert's services. The only way effectively to eliminate adversarial allegiance is if the experts are paid by a non-party. This poses substantial resource problems if experts must be paid by public funding. One solution is for parties to share the costs of tribunal-appointed experts or that parties share the costs along with some infusion of public funding. Splitting the costs in this way reduces the costs by at least half for the parties, and significantly more if some portions of the costs are publicly funded.

While expert independence is arguably a desirable circumstance insofar as it increases the potential for fair decision-making, the Supreme Court of Canada (SCC) has signalled that a somewhat watered-down version of expert independence is all that is required. In *White Burgess Langille Inman v. Abbott and Haliburton Co* (2015) the SCC noted that "anything less than clear unwillingness or inability" to provide objective non-partisan evidence should not lead to the exclusion of expert evidence if challenged (para 49). Thus, the mere fact that an expert may be

²⁴ For example, based on the writer's professional experience, the British Columbia Liquor and Cannabis Regulation Branch has seen experts introduced on exceedingly rare occasions.

paid by one party is insufficient to indicate bias and “The concept of apparent bias is not relevant to the question of whether or not an expert witness will be unable or unwilling to fulfill its primary duty to the court”, and actual bias must be shown (para 50).

A serious weakness of the SCC’s requirement to prove actual bias is that doing so is bound to be extremely difficult. Adversarial allegiance is demonstrably real (Murrie *et al.*, 2013; Murrie & Boccaccini, 2015) but likely to be subtly manifested. However, the potential is high for the expert’s opinion to influence the decision-maker whether that opinion is biased or not, and if the expert’s opinion is in fact biased, then the decision-maker is likely to decide in accordance with that opinion without necessarily being aware of the expert’s bias.

On one hand, the adversarial process mitigates this problem if experts for both parties are biased due to adversarial allegiance. The decision-maker is free to reject or favor elements of either or both experts’ opinions and find a middle ground that may represent a fair resolution. As noted, appraisal evidence typically tendered during expropriation compensation litigation is a good example of adversarial allegiance and decision-makers’ corresponding reluctance to rely on either appraisal report. In *Hanlon v. District of North Vancouver* (2022), the British Columbia Supreme Court identified a number of shortcomings in both sides’ appraisal reports in which the defendant valued the subject property at \$1.68 million and the plaintiff valued it at \$3.2 million. The court found the plaintiff’s report generally more reliable but valued the property at \$2.9 million. This decision was made in the context of the *Supreme Court Civil Rules* which expressly states that experts have a duty to assist the court and are not to be advocates for the parties (*B.C. Supreme Court Civil Rules*, 2000, Rule 11-2(1)) yet the court’s analysis of the parties’ expert reports still points to adversarial allegiance.

Indeed, assuming the experts are sufficiently qualified for the assignment and their

opinions are rationally justifiable within the framework of their expert knowledge, when a wide disparity exists between parties' expert opinions, adversarial allegiance is self-evident on its face. While a decision-maker is free to weigh the reliability of each report and arrive at their own conclusions and findings of fact gleaned from these reports, the question arises as to whether in the context of expert opinions, the adversarial model is the fairest or most efficient.

Arguably, the fact that it was open to the court to weigh the merits of two competing reports and to find a somewhat middle ground, suggests a fair result was achieved. In this vein, a decision-maker could conceivably take the average of multiple reports, and this would achieve a mathematically fair result.²⁵ So, by itself adversarial allegiance does not seem to produce unfairness if both parties tender competing expert opinions, again assuming the experts are sufficiently qualified and produce rationally justifiable opinions.

On the other hand, countering these points is the high cost to the parties of multiple expert opinions and to the hearing process. More substantively problematic is the potential for only one party to present a report that may be tainted by adversarial allegiance. In this situation, there is no countervailing professional opinion that acts as an accountability mechanism to mitigate the potential for proffering a skewed opinion. This concern is elevated in the case of administrative hearings involving self-represented parties who are not trained to expose expert bias or substantive flaws in an expert's opinion through cross-examination.²⁶

Similarly, under an adversarial approach lawyers tend to develop rapport and collegiality with experts, due to frequent or repeated contact. Thus, it is less viable for self-represented litigants

²⁵ This is consistent with research that indicates applying more than one model to a problem tends to produce more accurate predictions than a single model (Hu, Madden, Edwards, Xiangming, 2015).

²⁶ This is consistent with party-capability theory in which "haves" versus "have nots" often come out ahead in litigation (Galanter, 1974).

to establish similar relationships. Similarly, experts may be skeptical of the merits of self-represented litigants' arguments and of their capacity to pay for the experts' services.²⁷ Further, experts may be concerned about their own professional reputations in preparing a report for a self-represented litigant. In circumstances like these, experts may be reluctant to assist self-represented litigants.

The 1983 West German (Langbein, 1985) approach in which experts are selected by the decision-maker from a public list, addresses many of the concerns related to expert evidence under an adversarial model. However, an inquisitorial approach in this respect is not problem free. Limited public resources to pay for the expert is a significant issue. In addition, there is no opportunity for the parties to question the expert's qualifications, and so the parties must rely on decision-maker's judgment in selecting the expert. This is a practice which may be unsatisfactory to the parties.

The issues related to selection of experts is partly addressed if the decision-maker seeks input from the parties as to whom they may feel is an appropriate expert. The parties could nominate an expert without any prior contact with the expert, and the decision-maker could select among those nominated or choose their own expert. This approach is permitted under the British Columbia Supreme Court Rules in the context of court-appointed experts (*B.C. Supreme Court Civil Rules*, 2000, Rule 11-5(2)(3)), but there are generally no provisions for this under tribunal Rules in British Columbia, as shown in Table 1.²⁸ Table 1 lists 19 tribunals in British Columbia,

²⁷ This is based on the writer's personal civil litigation experience involving the interpretation of a lease as to whether the landlord could charge capital costs to the leaseholders as operating expenses. When inquiring with accountants about their availability to provide an expert report on the question, some indicated they would only deal with legal counsel as a matter of policy, others did not respond, and others simply said they were unwilling to assist. The writer could have sought an order of the court to compel an expert report, but the effort and delay of doing so resulted in his simply abandoning the acquisition of such a report which, as it turned out, could have greatly assisted his case.

²⁸ Notable exceptions include the Workers Compensation Appeal Tribunal, Rule 11.6(h) which "may require an expert to attend an oral hearing if the panel believes the attendance is necessary

and identifies only two among them for which tribunal rules of procedure positively state that experts have a duty to assist the tribunal.

Since under the 1983 West German (Langbein, 1985) approach, there would only be one expert opinion in relation to the issue in dispute, arguably costs could be shared among parties along with some component of public funding or entirely so. Additionally, there could be publicly funded experts whose specific full-time functions are to act as court/tribunal appointed experts, especially commonly sought experts like physicians, accountants, and engineers. This would increase experts' availability and reduce administrative costs involved in seeking them out and engaging in contract negotiations.

for a fair hearing of the issues...”; and the Civil Resolution Tribunal which may order an independent medical examination on its own initiative, (Rule 8.5 (1)) one consideration for which is the ability of the parties to pay for their own experts (Rule 8.5 (3)(e)).

Table 1. List of 19 tribunals in British Columbia and a statutory reference showing whether or not their Rules of Procedure require that expert witnesses owe a duty to assist the tribunal.

Tribunal	Experts owe duty to assist tribunal	Experts do not have an express duty to assist tribunal
Administrative Tribunals Act, 2004		✓
BC Human Rights Tribunal (<i>Rules</i> , 2021)		✓
BC Utilities Commission (<i>Rules</i> , Order G-178-22)		✓
Civil Resolution Tribunal (<i>Rules</i> , 2022)	✓	
Community Care Assisted Living Appeal Board (2002)		✓
Employment and Assistance Appeal Tribunal (<i>Rules</i> , undated)		✓
Employment Standards Tribunal (<i>Rules</i> , 2020)		✓
Environmental Appeal Board (<i>Rules</i> , 2018)		✓
Financial Services Tribunal (<i>Directives</i> , 2021)		✓
Forest Appeals Commission (<i>Practice Manual</i> , 2019)		✓
Health Professions Review Board (<i>Rules</i> , 1996)		✓
Hospital Appeals Board (<i>Rules</i> , 2005)		✓
Industry Training Appeal Board (<i>Rules</i> , 2003)		✓
Labor Relations Board (<i>Rules</i> , 2022)		✓
Passenger Transportation Board (<i>Rules</i> , 2020)		✓
Property Assessment Appeal Board (<i>Rules</i> , 2020)		✓
Safety Standards Appeal Board (<i>Rules</i> , 2017)		✓
Surface Rights Board (<i>Rules</i> , 2010)		✓
Workers Compensation Appeal Tribunal (<i>Rules</i> , 2022)	✓	

10. Administrative tribunals in British Columbia

Generally, there are two types of administrative tribunals in British Columbia. First are those which incorporate and apply provisions of the *Administrative Tribunals Act*, 2004 (“ATA”) which outlines specific procedures and defines the standard of review on judicial review (paras 58-59). These tribunals remain free to establish their own rules of procedure, but at a minimum they must apply those sections of the ATA that are expressly adopted under the tribunals’ home statutes.

Secondly are tribunals which do not apply any provisions of the ATA and generate their own rules of procedure based on common law principles. Examples include Road Safety BC (formerly the Superintendent of Motor Vehicles) hearings which involve alleged contraventions under its Immediate Roadside Prohibition and administrative driving prohibition scheme (*Savage v. British Columbia (Superintendent of Motor Vehicles) and Douglas v. British Columbia (Superintendent of Motor Vehicles)*, 2006, para 61), and the Liquor and Cannabis Regulation Branch hearings which involve liquor and cannabis licensees who have allegedly contravened certain licencing requirements (*The Cambie Malone’s Corporation v. General Manager of the Liquor Control and Licensing Branch*, 2009, para 24).

In both kinds of tribunals in British Columbia, evidentiary procedures are expressly relaxed in comparison to courts’ procedures, under the ATA (s. 40), or enabling legislation or tribunal Rules of procedure (e.g. WCAT Rules, 2022), or as established by common law.²⁹ The rationale for relaxing these rules is that the express legislative intent is for administrative proceedings not

²⁹ For instance, hearsay evidence/testimony is permissible subject to an opportunity for the opposing party to refute the evidence: *Cambie Hotel (Nanaimo) v. British Columbia (General Manager, Liquor Control and Licensing Branch)*, 2006 BCCA 119, para 28-38.

to be as adversarial as criminal or civil cases (*Cambie Hotel (Nanaimo) v. British Columbia (General Manager, Liquor Control and Licensing Branch)*, 2006, para 30).³⁰ In this respect, it may be presumed that administrative proceedings in Canada generally, on their face, involve inquisitorial principles, although the extent to which each tribunal leans in this direction varies, and the question as to where on the inquisitorial-adversarial spectrum British Columbia tribunal practices ought to be, is the subject of my research study and further discussion herein.

11. The role of the registrar

Although virtually all tribunals employ a registrar or case managers who have decision-making functions on pre-hearing procedural matters,³¹ there is a paucity of literature on the role and effectiveness of the tribunal registrars. Sossin (2013) recognized that registrars often undertake the role of aiding individuals in completing forms and understanding tribunals' basic process requirements (p.10). However, the functions of tribunal registrars are largely ascertained by reviewing the tribunal rules of procedure.

In relation to administrative hearings, registrars typically determine the nature of the hearing required (i.e., whether it may be an oral hearing and whether it may be in-person or held virtually, or a written hearing), schedule hearings and consider the appropriate duration for hearings based on the number of witnesses and the nature of the submissions the parties intend to advance; set deadlines for the exchange of disclosure between parties, manage hearing process for consistency; ensure that parties have access to information about hearing procedures, law, and

³⁰ See also *Quebec (Commission des droits de la personne et des droits de la jeunesse) v. Bombardier Inc. (Bombardier Aerospace Training Center)*, [2015] 2 S.C.R. 789, para 68.

³¹ This decision-making responsibility was confirmed by the information provided by Registrars for the tribunals that are the subject of this research study.

policies of the regulating agency; and manage post-hearing matters relating to penalties imposed on parties.³²

In the case of the Civil Resolution Tribunal, case managers undertake the typical functions of a registrar noted in addition to expanded functions to facilitate pre-hearing dispute resolution which include directing parties to provide information or evidence, recommend that parties be added to a dispute, permit a party to revise, add, or withdraw claims, determine costs associated with these steps (Civil Resolution Tribunal Rules, 2022, Part 5).

12. Research Study – Methodology and Number of Responses

This research study seeks to understand the extent to which adjudicators in British Columbia and their associated institutions (i.e., the tribunal chair and the registrar's office), apply inquisitorial or adversarial approaches to their decision-making procedures. To my knowledge no published study exists in this respect.

I designed two surveys using SurveyMonkey.com: one for adjudicators; one for registrars. Generally, the 23 questions for adjudicators sought responses about the extent to which adjudicators assist parties to understand the relevant issues and to present their best evidence, particularly in the event it becomes apparent during hearings that key evidence is missing.

Nine questions posed for the registrars sought data about the number and length of the hearings involved for the given tribunal and sought to elicit the extent to which registrars or institutional staff assist parties at the pre-hearings stages in understanding the hearing procedures, the evidence they may need to support their claims or defences, and any defences that may be available to them.

³² These examples are excerpted from the Enforcement Hearing Rules for the Liquor and Cannabis Regulation Branch in British Columbia (2021).

To contact potential respondents, I accessed the British Columbia Crown Agencies Board Resourcing Office (2022) website which lists many tribunals in British Columbia and their members. I obtained most email addresses for the adjudicators and registrars through a British Columbia Government Directory search, and a small number of adjudicator emails (4 – 5) through Google searches, and a few (< 5) were referred to me by tribunal members or executive staff after my initial email contact. I obtained a small number (< 5) of registrar email addresses after posting an inquiry on a public contact email or public request field on tribunal websites.

All participants were asked to complete and sign an Informed Consent Form, approved by York University. The research protocol was approved by the Osgoode Hall Law School Research Ethics Office and the Research Ethics Committee of York University.

I distributed a first email inquiry in late April 2022 to 263 adjudicators and 12 registrars. After the first set of emails were issued and approximately six weeks had passed, I had received four responses to the adjudicator survey, and three to the registrar's survey from three different tribunals. In early June 2022, I made additional inquiries of two more tribunals and 11 adjudicators not originally included. As a result, I received ten more responses for a total of 14 adjudicator responses from five different tribunals, as shown in Table 2.

Table 2. Distribution of adjudicator and registrar responses received, by tribunal and anonymized to maintain the respondents' confidentiality.

Tribunal	Adjudicator responses	Registrar responses
A	1	
B	2	
C	1	1
D	9	
E	1	
F		1
G		1

13. Summary of adjudicators' responses

Due to the small sample size, I am able to set out responses in detail rather than by general category or by statistical analysis, as would be more appropriate for a much larger sample size. Thus, in the absence of a larger data set I have paraphrased all the unique comments while avoiding duplication and show only their anonymized source tribunal.

Adjudicator responses are summarized below, by question. For yes/no responses, the tables show the total number of responses and the number of skipped responses. Three questions relating to informed consent and tribunal identity are not included. Square brackets indicate the number of similar responses among all the respondents. Following this, registrar yes/no responses are summarized in Table 3 (p.45), followed by a summary of their responses/comments. Red letters indicate the source tribunal for the comment. Similar responses from adjudicators from the same tribunal are shown only as a single response and the number of duplicated responses is not noted.

	Question	Yes	No	Skipped
3	During hearings, are there instances when you become concerned that critical evidence is missing but may be available and which may affect the outcome of the case?	12	2	0

Response/comment

- Yes. Hearings often involve a lone appellant, who usually have little idea of what is needed. **D**
- Common with medical evidence. Often parties believe that a medical professional has submitted the evidence only to learn at the hearing that the evidence was not submitted. **B, D**
- Sometimes third-party investigation reports are missing. **D**
- Sometimes testimony indicates the existence of other undisclosed relevant written evidence. We are permitted by legislation to admit additional evidence, even verbal evidence. **B, D**
- Witnesses sometimes refer to documents not in evidence. **D**
- Since our determinations are usually legal in nature, conflicts in evidence are rare. **E**
- It is my job to review the evidence before the hearing to ensure parties disclose evidence before the hearing. Rarely does it become apparent during a hearing that evidence is missing, in which case I direct parties to obtain and disclose the evidence and allow time for submissions. This delays the proceeding, which is why pre-hearing evidence review is preferable. **D**

	Question	Yes	No	Skipped
4	Do you ask questions of parties that may elicit evidence or information that may not have been disclosed prior to the hearing or raised during the hearing by either party?	14	0	0

Response/comment

- Yes. Sometimes evidence is adduced for the first time at a hearing. **D**
- Yes. This is standard practice for hearings I adjudicate. [2] **B**
- Yes. Our board has an inquisitorial mandate; a legislated obligation to ensure the accuracy of assessments. So, we do ask questions about missing evidence and request information needed to determine accuracy. **A**
- Yes. The tribunal uses a hybrid model. So, I am permitted and do ask questions of parties which may generate information not disclosed before the hearing. **D**
- Yes. The tribunal has authority to obtain evidence not disclosed, e.g., an independent health professional. If I am concerned I do not have the full picture in order to make the correct decision, I will seek that evidence. [2] **D**
- Yes. After cross-examination (or direct if no opposing party), I will ask questions to elicit evidence that may not have come out in the cross-examination. Once complete, I allow the other party an opportunity for further cross-examination and an opportunity for re-direct. **D**
- Yes, but it occurs only sometimes. I consider the nature of the issue, whether the facts are needed to fairly decide the issue/argument, the interests of the parties and other individuals, and how the evidence might affect the decision. **E**

	Question	Yes	No	Skipped
5	Do you modify your hearing approach when self-represented litigants are involved?	12	2	0
6	If yes, what modifications do you make?			0

Response/comment

- I ask questions to elicit evidence that will aid decision.[5] **D, C**
- Give parties further opportunity to further cross-examine if I have asked questions. **D**
- More guidance on process, explain protocols, reduce legalese.[8] **B, A, C, D**
- Relax rules of evidence and procedure. **D**
- More breaks. **C**
- May allow more time for more evidence. **D**
- Conduct my own investigation. **D**
- Ask whether party has questions about procedure. **D**
- Alternative oath-taking. **D**
- Use pre-hearing conferences to discuss process. **D**
- Use of will-say statements. **D**
- Issue memoranda to identify outstanding issues. **D**
- Process built around self-represented parties, so no express modifications are made for them. **E**

	Question	Yes	No	Skipped
7	If self-represented parties, or parties represented by what appear to be poorly prepared or incompetent representatives, provide only scanty evidence to support their cases, do you offer adjournments to allow them to obtain additional evidence?	5	7	2

Response/comment

- Generally not allowed under tribunal policies/practices. **B**
- In almost all cases, yes. If the information appears to be relevant and not already included in the file, I will likely grant time to provide the information. **D**
- I do not offer adjournments. We hold pre-hearing conferences when we provide guidance and parties may ask questions and inform themselves. If they remain unprepared at the hearing, we do not offer adjournments. It may not result in better evidence and may cause unnecessary delay. However, I will consider a request and weigh the benefit against the prejudice. [3] **A, D**
- In general, I do not offer adjournments, but may permit them to submit documents after a hearing. **D**
- Yes, but it depends on the circumstances. [2] **C, B**
- Yes. Parties should not be hindered by incompetent representation, but this is common. **D**

- I sometimes offer adjournments. I will sometimes grant extensions to obtain more evidence or get the evidence myself and offer an opportunity to respond. [2] **D**
- Typically, no. Decisions are made on complex law and don't normally depend on additional evidence. If a party is so poorly prepared that it impacts their case, I would consider a request for more time, but usually the problem is lack of understanding of the law. In these instances, registrars spend more time answering parties' questions about process. **E**

	Question	Yes	No	Skipped
8	Specifically, if a self-represented party (or one who appears to be poorly represented) said they had documents which were not disclosed prior to the hearing, but were readily available in electronic form and could be presented on the day of the hearing itself, would you allow them to present that evidence?	12	1	1

Response/comment

- Generally not allowed under tribunal policies/practices. **B**
- In almost all cases, yes but will provide an opportunity for the other side to object or make submissions as to their needs in relation to the late production, including time to review, in which case I may allow postponements. [3] **D**
- Yes, but it depends on the benefit and prejudice to the parties. The other party will need time to review the evidence and consider whether they object to its admission or not. [3] **D, A**
I would also advise the party there may be consequences for late disclosure. **C**
- If documents are relevant, I will generally accept them at the hearing and may provide other party opportunity to give written submissions regarding the documents. If there is no opposing party, I am more willing to allow the late evidence since there is no unfairness to an opposing party. **D**
- If there is no opposing party, I will allow the party to present the documents on the day if they are not voluminous and readily available. If documents are voluminous and there is an opposing party, I would indicate the documents could be submitted after the hearing along with submissions as to whether the evidence needed to be subject to cross-examination in which case I might reconvene the hearing. **D**
- Since the tribunal uses written hearings, this does not come up. We will follow up for documents that are referred to in submissions by internet link or pdf. **E**
- Yes, since excluding evidence may lead to the wrong outcome. **D**

	Question			Skipped
9	If no, why not? [From Q8]			9

Response/comment

- Generally not permitted by tribunal practices/policies. **B**

- If the additional evidence was of little or no relevance to the issues, or if it was not possible to mitigate unfairness to the other party through post-hearing written submissions. I might refuse to accept late expert reports if there was no reasonable explanation for why it could not have been obtained and disclosed earlier. **D**
- If voluminous, may ask party to submit documents after the hearing and submissions whether further testimony required. May reconvene hearing. Opposing party would have opportunity to respond. **D**

	Question	Yes	No	Skipped
10	If no, would you consider doing so in the future, and why?	1		13

Response/comment

- Yes, but not currently allowed under tribunal practices. **B**

	Question			Skipped
11	What factors would you consider in allowing adjournments for parties to obtain further evidence?			0

Response/comment

- Probative value versus prejudice. [8] **A, C, D**
- Credibility of the evidence. **B**
- The nature of the evidence, and whether it will assist in deciding issues. **D**
- Lack of sophistication in understanding what evidence may be required. **D**
- There is an application to gather other evidence. **D**
- If I have identified that other relevant evidence probably exists. [2] **D**
- If relevant, the evidence can be reasonably and rapidly obtained. **B**
- Party or representative are clearly new to process. **B**
- Generally, will not adjourn but may allow additional time for submission of written material and if necessary can reconvene the hearing. [2] **D**
- Impact on ability to complete hearing within statutory timelines. [2] **D**
- The reason for not providing the evidence. [2] **D, E**
- Steps taken to obtain the evidence. [2] **D**
- If witness' testimony raised matters that could not be anticipated by the other party and the other party wanted to address those matters with further evidence. **D**
- Whether a witness has become unavailable to give testimony. **D**
- Whether provision of evidence (i.e., specialist's report) delayed for reasons beyond party's control. **D**
- Reasonableness of timing. [2] **D**
- Whether the evidence currently exists/available at time of hearing. **E, B**
- Indication of serious pursuit of matter versus a vexatious pursuit. **D**

	Question	Yes	No	Skipped
12	Are your responses to the questions above different if parties are represented by lawyers?	5	9	0

Response/comment

- Yes, clearly a qualified lawyer should not put their clients into such a position. **B**
- No, but I will make counsel aware of my dissatisfaction. If expert evidence is required but not presented, I have required lawyers to provide an affidavit to show what steps were taken to comply with timelines for disclosing reports. **D**
- Many lawyers are not well-versed in the subject area and/or are not skilled representatives. **D**
- Yes, I have a greater expectation that lawyers will be properly prepared. However, if there is a reasonable explanation for the late evidence, I will accept it. **D**
- No, but I have higher expectation that lawyers will comply with the procedural rules. **D**
- Yes, usually there is less inquiry required from me. **D**
- Not always, but usually lawyers address the issues directly as related to the legislation. **B**

	Question	Yes	No	Skipped
13	In relation to Q12, does the kind of representation make a difference (i.e., a lawyer, paralegal, non-lawyer advocate)?	7	7	0

Response/comment

- It cannot be presumed that lawyers are the best representatives, there are many competent private representatives and self-represented individuals. **D**
- Lawyers and representatives should never place their clients in such a position [of presenting scanty evidence]. **B**
- Yes, I have reduced expectations for non-lawyer advocates compared to lawyers and regulated paralegals. [2] **D**
- Some lay representatives are more competent than lawyers. **D**
- No, we don't proceed any differently based on the type of representative. **B**

	Question			Skipped
14	What are the benefits of hearings based on written submissions only?			1

Response/comment

- Faster, more focussed; efficient and cost effective (no need to find suitable hearing date). [9] **D, B, A, C**
- Easier to refer to than a handwritten summary of oral testimony, which are only as good as the notes taken. **D**
- If testimony is not required, written submissions are faster. [2] **A,D**
- If party is satisfied with a written-submission process, it is effective. **D**
- Better and more relevant evidence and submissions and limits irrelevant evidence that often comes out during oral hearings. [3] **D**
- Reduces back and forth of he-said/she-said type evidence. **D**
- Many hearings can be resolved on the basis of expert reports, law, or policy for which an oral hearing would add no benefit. [3] **D**
- In our case, written hearings are the norm. Oral hearings are held only if issues are complex, or the evidence is conflicting, and cross-examination is needed. **A**
- Eliminates disputes about what is on the record. **E**
- Gives parties time to gather thoughts and make submissions from locations at which they are comfortable. **D, E**

		Question			Skipped
15		What are the detriments of hearings based on written submissions only?			0

Response/comment

- If written submissions are a requirement, a party may not feel they have been heard. [2] **D**
- Critical evidence may be missed and unknown which an oral hearing could have elicited. [6] **B, C, D**
- Tend to result in decisions favorable to the regulator. **B**
- Cultural, linguistic barriers which oral hearings tend to resolve.[3] **D**
- Difficult to assess credibility. [2] **D**
- Limited or no ability to ask follow-up questions. [5] **D, B**
- Some parties do not have capacity to provide written submissions or understand what evidence is relevant, especially if unrepresented. [2] **D**
- Time consuming and require adequate resources like computers, or if they are handwritten, they must be mailed or dropped off, which not all disputants have easy access to. **E**
- Irrelevant, voluminous, or conflicting evidence/submissions are less easily addressed. **D, E**
- If adjudicator needs more information on a point, he/she must issue a letter explaining the need for more information. **E**
- Inability to determine if there may be additional submissions from the parties. **B**

	Question	Yes	No	Skipped
16	For written submissions, if it appears to you that there is information missing but you believe the information is likely available, do you ask parties to supply this missing information?	12	2	0

Response/comment

- Not allowed under current policy and procedures. **B**
- Yes, if the information is needed to ensure the accuracy of the decision. **A**
- I may ask for further submissions or ask them to address a specific question I have. **C**
- Parties sometime refer to documents not in evidence or refer to events for which document likely exist and can be requested. **D**
- I will sometimes obtain the information myself while informing the parties of this and allowing for objections. **D**
- It depends on the relevance of missing information and the possible reasons why it was not provided. If it was likely due to a misunderstanding of the process, I would likely ask for the missing information. I would also consider the consequences to the parties if the information was supplied. In some cases, the law requires us to provide the parties with an opportunity to supplement or clarify their evidence. **E**
- No, our practice/procedure is to proceed based only on the information provided. **B**

	Question	Yes	No	Skipped
17	For hearings by written submissions, if you believed your decision could benefit by hearing oral testimony from the parties, would you consider re-scheduling the hearing for an oral hearing (assuming that is within the scope of your authority)?	13	1	0

- Not within scope of authority, but generally feel that oral hearings are fairer and more effective than a written-submissions hearing. **B**
- Yes, particularly if there is a language barrier or other limitations that make it challenging for a party to give written submissions. **A**
- One option is to have witnesses appear for cross-examination and re-direct only. **C**
- Yes, this is often done.[2] **D**
- I would consider this, but given the kind of decisions I make, this would not generally improve fairness. **E**
- No. The procedures allow the party to choose from the outset whether they want an in-person, written, or hearing by video/teleconference. **B**

	Question	Yes	No	Skipped
18	Does the relative magnitude of the potential penalties involved affect your responses to any of the questions above?	7	6	1

Response/comment

- No, I do not deal with penalties (although others in my tribunal do). **D**
- Yes. I deal in the denial of benefits which may be a significant life and financial event for the party. I do consider how the decision impacts the litigant or another party. [3] **B, D, E**
- No. The principles of natural justice are predominant regardless of the significance of the penalty. **A**
- Yes. I am more willing to hold a hearing for \$200K penalty than a \$2K penalty. One should weigh the time/cost impact of a decision. **D**
- Yes. The tribunal strives for processes proportionate to the significance of the issues appealed. That said, the significance of the issues must be considered in the context of the parties' circumstances. [3] **D**

	Question	Yes	No	Skipped
19	Do you sit on more than one administrative tribunal in British Columbia?	2	12	0
20	If yes to the above, do you conduct your hearings differently depending on the tribunal involved?	1	1	12
21	Also, if yes to question 19, does the volume of hearings conducted by the tribunal and the number of hearings you are expected to conduct affect how you conduct your hearings?	1	1	12

Response/comment

- The volume and complexity of hearings relative to tribunal resources impact how hearings are conducted. Important to seek proportionality between the process and the significance of the outcome and to be mindful of the tribunal resources. An excess of resources used in one matter may unfairly reduce the resources available in another. **D**

	Question			Skipped
22	If you have concerns post-hearing about the hearing process, what would you recommend to improve the fairness of the hearing process?			5

- If there is need for remedial action after a hearing, I will take appropriate action. If there was a problem arising from a systemic issue, I will advise administrative personnel in an attempt to avoid similar problems in the future. [3] **D**
- Adjudicators are encouraged to speak to the tribunal Chair. [2] **B**
- Concerns should be dealt with at the hearing. If issues arise after the hearing, then appropriate steps are taken to address them as they arise. [2] **A**
- I may provide an opportunity for post-hearing submissions, or in some cases reconvening an oral hearing. [3] **D**
- I would consider any requests for reconsideration based on principles of *functus officio* and law regarding fresh evidence. Generally, I am continuously reflecting on the process and considering what could be done better to improve fairness. **E**

14. Registrars' responses

In this section, first I set out two tables showing the distribution of Registrars' yes/no and numerical-data responses, respectively, and then I set out tables and paraphrased summaries of their anecdotal responses.

Table 3. Summary of registrar responses to survey questions requiring yes/no response.

	Question	Yes	No	Skipped
1	Do tribunal Registrars and staff provide assistance to parties during the disclosure process?	3		0
2	Prior to hearings, do tribunal Registrars and staff assist the parties in understanding hearing procedures?	3		0
3	Prior to hearings, do tribunal Registrars and staff assist the parties in understanding defences that may be available to them, and the evidence required to prove their defences?	2	1	0

Table 4. Registrar responses to questions seeking data on hearing volume, duration and time to render decisions.

	Question	Registrar 1	Registrar 2	Registrar 3
1	Roughly how many decisions in total are rendered by the tribunal a year?	200	40	100
2	Typically, how long are hearings?	10 hrs	21 hrs	7 hrs
3	Typically, how soon after a hearing has concluded do adjudicators render their decisions?	40 days	100 days	1 day

Anecdotal responses

	Question	Yes	No	Skipped
3	Do tribunal Registrars and staff provide assistance to parties during the disclosure process?	3		0

Response/comment

- Registry staff are available to assist parties with understanding their disclosure obligations and how to make or respond to an application for disclosure. When a party fails to meet their disclosure deadline, staff reach out to them to ensure they understand their obligations and comply. Sometimes, staff recommend that a tribunal member conduct a case conference with the parties to ensure they understand their disclosure obligations. **C**
- Dedicated staff are assigned to assist parties throughout the dispute resolution process. Most of our parties are self-represented and unfamiliar with legal processes and language. Staff discuss with all parties the burden of proof, how to identify relevant evidence and how to determine whether expert evidence may be required. Staff also point parties to resources on our website, such as common types of evidence for various types of disputes. **F**
- The agency is a licensing body, so "disclosure" pertains to the applicant providing evidence to support their application. **G**

	Question	Yes	No	Skipped
7	Prior to hearings, do tribunal Registrars and staff assist the parties in understanding hearing procedures?	3		0

Response/comment

- Staff conduct a pre-hearing teleconference with the parties to schedule dates and ensure they understand their obligations and deadlines for preparing for the hearing. The presiding

tribunal member conducts a further pre-hearing teleconference to do a hearing readiness check with the parties. **C**

- Most hearings are conducted by way of written submission. Staff are assigned to assist parties in providing evidence and written argument. We explain the process prior to the collection of evidence and advise parties of where they are in the process and next steps as they progress. **F**
- Most of the agency's hearings are based on written submissions. Hearing procedures are discussed in tribunal policies and procedures available to the public. **G**

	Question	Yes	No	Skipped
8	Prior to hearings, do tribunal Registrars and staff assist the parties in understanding defences that may be available to them, and the evidence required to prove their defences?	2	1	0

Response/comment

- A pre-hearing case conference with the presiding member may include discussions about the scope of the complaint and elements of proof and defense. **C**
- Our staff point parties to caselaw which may be on point and also discuss the burden of proof, how to identify relevant evidence and how to determine whether expert evidence may be required. Staff also point parties to resources on our website, such as common types of evidence for various types of disputes. **F**
- Defences do not apply because this is not a compliance and enforcement or disciplinary matter. The agency is primarily a licensing body. However, staff do review with the applicants the applicable policies and procedures. **G**

15. Discussion/analysis

Data were obtained from a total of seven tribunals, including adjudicator responses from five different tribunals (Table 2, p.35) and three registrar responses each from different tribunals. Tribunal C was the only one for which both an adjudicator and a registrar responded.

Fourteen adjudicators responded, nine were from Tribunal D; two were from Tribunal B; one each from Tribunals A, C, E, F, and G. Two adjudicators indicated they also worked for other tribunals which were not otherwise represented by adjudicator responses, one of whom indicated they conduct hearings differently as between the two tribunals, although the question (number 19, or "Q19") does not ask them to identify how.

Due to the small sample size, no meaningful statistical analysis can be derived from the data. However, noteworthy observations can be made based on the information provided and insight demonstrated through the qualitative data received. As nine adjudicators associated with Tribunal D provided responses,³³ this suggests to me that the tribunal Chair or registrar encouraged the adjudicators to respond and/or the adjudicators in general felt there were no institutional barriers to providing their responses. Conversely, it is not possible to infer that adjudicators from other tribunals were either discouraged from responding or perceived institutional hurdles in responding, since it may be that adjudicators from other tribunals simply had neither the time nor the inclination to respond.

Adjudicators responded to the majority of the questions and provided comments even for questions that did not invite them to do so. As a result, despite the small sample size, the richness of the qualitative information received does allow for meaningful evaluation of the nature of the specific tribunals for which responses were received.

In general, the responses in this study indicate inquisitorial or hybrid leanings among all seven tribunals. None of the responses indicate that either a strictly adversarial or a strictly inquisitorial model is followed, although the responses do demonstrate a diversity of practice with respect to a range of models on the inquisitorial-adversarial spectrum, as shown in Figure 2.

³³ This number comprises a significant proportion of the total number of adjudicators working for that tribunal. However, I do not cite the exact proportion in order to avoid the possibility this could identify the tribunal.



Figure 2. Positions of the seven tribunals in this study on the inquisitorial-adversarial spectrum.

The rationale for the tribunal plot positions is as follows. First, on the inquisitorial end of the spectrum, I consider the 1983 West German model (“1983 WG”) to reflect the closest one among those discussed to a purely inquisitorial model. As earlier identified, under this approach there is no distinction between a claimant’s case and a defendant’s case and the judge controls both pre-hearing and hearing processes in their entirety, including the determination of witnesses, the acquisition of relevant public documents, and the selection of impartial expert witnesses whose allegiance is to the court. The judge examines witnesses. He or she may set an initial hearing at which some or all issues may be resolved. Judges may adjourn hearings if further evidence is required. In contrast, the adversarial end of the spectrum is represented by Provincial superior trial courts, i.e., the Supreme Court of British Columbia, but does not include Provincial courts or the Court of Appeal.³⁴

The distinction between Tribunals A, C, D as a group and the others (B, E, F, G) is subtle, but there are identifiable differences. Tribunals A, C, D may be grouped as applying an active

³⁴ Provincial courts tend to apply more relaxed Rules of procedure and exhibit some features of inquisitorial courts; the Court of Appeal, in general, involves reviews on the record and typically do not involve findings of fact from the evidence.

adjudication model due to the adjudicators' willingness to guide participants through the hearing process and to ask questions of the parties to clarify matters and/or elicit additional evidence during the hearing itself or after an adjournment.

At the same time, there is a range of approaches among adjudicators from Tribunal D. For instance, in response to Q7, one adjudicator for Tribunal D indicated a propensity to permit adjournments for parties to obtain additional evidence, whereas a second adjudicator indicated that he or she would not offer adjournments because the parties are guided during pre-hearing conferences and have an opportunity to ask questions about the process, although the extent of the guidance was not specified.³⁵ This range of responses indicates that individual adjudicators do not feel restricted in the exercise of their discretion to modify procedures according to the circumstances before them.

Tribunal B appears somewhat more adversarial due to the responses of one (of two) adjudicators who indicated that tribunal policies/practices do not allow adjournments to self-represented parties to provide additional evidence if they arrive poorly prepared or represented by incompetent counsel (Q7), even during the hearing if the evidence is readily available (Q8); nor are adjournments to re-set a written matter for an oral hearing permitted, unlike for Tribunal D where this is often done (Q17). The same Tribunal B adjudicator indicated that lawyers and/or representatives should never put clients in a position of presenting scanty evidence (Q13), although other adjudicators' responses indicated that this does in fact happen (Tribunal D). Thus, the adjudicator's comment suggests that if such poor representation does occur, then there can be no intervention from the tribunal. This is apparently due to the prescribed adjudication process under which it is beyond the adjudicators' control if the outcome goes against a party who has failed to

³⁵ No registrars from Tribunal D responded, so this perspective cannot be clarified or supported from a Registrar or staff perspective.

present sufficient evidence – an adversarial perspective. For this reason, I have positioned Tribunal B to the right of the group A, C, D.

Tribunals E and G both involve exclusively written submissions (adjudicator Q8; registrar Q7). Tribunal A also uses primarily written hearings, but opportunities for oral hearings are available if the evidence is conflicting or the issues complex (adjudicator Q14), and for this reason I have included A with C and D, while situating E and G to the right of this group on the spectrum. Although 12 of 14 adjudicators indicated they would ask parties to supply information missing from written submissions (Q16), clearly there are limitations to the degree of clarification that can be obtained through a purely written process since there is no mechanism available to replace oral cross-examination and re-direct examination. This limitation in the truth-seeking function for adjudicators deciding matters on the basis of written submissions situates Tribunals G and E to the right of the A, C, D group.

I have situated E to the right of G on the spectrum because the Tribunal E adjudicator indicated that requests for reconsideration must be viewed in the context of law regarding *functus officio*³⁶ and fresh evidence (Q22), whereas the registrar for Tribunal G indicated that staff are assigned to assist parties with providing evidence and written argument and advise parties where they are in the process and the next steps as they progress (registrar Q7). The Tribunal E adjudicator noted that his/her determinations do not typically involve conflicts in evidence and are usually legal in nature, although he/she would consider providing additional time to prepare if the party was so poorly prepared that it impacts their case (adjudicator Q3, Q7). On the other hand,

³⁶ This doctrine says that once a decision is made, the decision-maker cannot re-open a matter for additional evidence or submissions. See for example, *Chandler v. Alberta Association of Architects*, (1989).

the Tribunal G registrar did not comment on a reconsideration process,³⁷ but it appears that agency staff are more actively involved throughout the submissions process until an adjudicator decides the outcome than in the case of Tribunal E. This ongoing active involvement somewhat equates to a continuous reconsideration process, which may be largely excluded in Tribunal E by the doctrine of *functus officio* and law related to fresh evidence. Particularly in administrative contexts, arguably fairness should circumscribe the law on *functus officio* and fresh evidence which are largely premised on an adversarial system in which parties only get one “kick at the can”, and otherwise must seek judicial review through the courts on the basis of legal error. For this reason, I have situated Tribunal E to the right of Tribunal G on the spectrum.

Finally, I have situated Tribunal F to the left of the A,C,D group. Based on the registrar’s response for this tribunal and my knowledge of the Tribunal’s enabling legislation and Rules, it is possible to infer³⁸ a largely inquisitorial approach due to the high degree of pre-hearing assistance which staff provide to parties in identifying relevant evidence, pointing to caselaw, discussing the burden of proof, and determining if expert evidence may be required (registrar Q3, Q7, Q8). The degree of assistance provided to parties appears to go beyond that of Tribunal G and, unlike Tribunal G, involves oral hearings where adjudicators may also be actively involved in eliciting evidence.

A comment should be made regarding the effects of the volume,³⁹ complexity, and the magnitude of the penalty involved on adjudicator approaches. It is recognized that high-volume

³⁷ Feedback about reconsiderations was not sought in the surveys.

³⁸ For this inference, I have also considered legislation and Rules which point to a high degree of active adjudication during oral hearings. However, in order to avoid identifying the tribunal, I do not cite these references.

³⁹ Table 4 (p. 49) indicates the hearing total volume for three tribunals, which in itself is of limited value in terms of relevant analysis. More useful data would be the number of decisions per adjudicator per unit period, but such data was not sought in this study.

tribunals for which time and resources are especially limited may sacrifice elements of procedural thoroughness in order to avoid unreasonable delays in the decision-making process, especially under an adversarial system (Asimow, 2013, pp. 109-111). The same result may be true of complex hearings in which a domino-effect of delays among the entire file docket may occur (Menzies, 2020, p. 86-88). Similarly, if the impact is low to parties, from the decision-makers' perspectives, the adjudicators may, in the public interest, seek to reduce resource expenditure.

The adjudicator survey asked whether the potential penalties (Q18) involved, and the volume of hearings affect how hearings are conducted (Q21). In terms of penalties, the yes/no responses were roughly evenly divided. Generally, the "yes" respondents considered proportionality between resources and the severity of the outcome for the parties. The "no" respondents either did not deal with penalties or held the view that the principles of natural justice prevail regardless of the penalties involved. For those in the proportionality camp, there is some suggestion that if the consequences to a party are relatively small, then some steps to ensure that all relevant evidence is available may perhaps be overlooked. This would reduce the costs involved in adjourning a hearing for further evidence or in seeking an expert opinion on an issue, for example.

The conflict between the public interest in conserving scarce taxpayer dollars and ensuring optimal procedural fairness is a difficult one to reconcile. Here I do not attempt a detailed review of this issue. However, one wonders whether some adjudicators and/or tribunals as a matter of general practice may too easily cut corners on certain aspects of procedural fairness, such as providing an opportunity to present evidence at the hearing itself that was not earlier disclosed, because the penalties or benefits are perceived by the decision-makers as being relatively small.

To be clear, I would like to clarify that the information provided by the respondents does not indicate this is common practice among the tribunals in this survey.

16. Directions for further research

The British Columbia administrative tribunals contacted for this study were limited primarily to those listed on the Crown Agencies and Board Resourcing Office (2022) website.⁴⁰ However, it should be recognized that there are many more administrative tribunals operating in British Columbia. A higher volume of input from a larger number of tribunals/adjudicators would likely provide for meaningful statistical analysis.

A wider study could also involve comprehensive comparisons between tribunals across Canada and Federal tribunals, as well as between tribunals generally and lower Provincial courts, while omitting courts of appeal.

17. Recommendations

In my view, the active-adjudication model does not go far enough to ensure procedural fairness especially where self-represented parties are involved. Active adjudication certainly assists parties substantially, but according to its features as set out by Green & Sossin (2013), it does not account for the costs of expert witnesses, nor does it account for potential bias among lay witnesses who are called by the parties (p.72). Similarly, the active-adjudication model does not explicitly advocate for pre-hearing involvement of the adjudicators, although it does advocate for early disclosure and involvement of the tribunal (presumably via registrars or case-managers) to suggest what witnesses may be called (Green & Sossin, 2013, p. 72). Similarly, from a philosophical perspective, the truth-seeking function should remain the highest adjudicative

⁴⁰ Adjudicators from two additional tribunals were added after the initial email distribution seeking responses.

priority and in this respect subsumes “problem-solving”, which Green & Sossin (2013) have observed is foundational to the “third way” of active adjudication (p.75).

On the other hand, although I advocate for the use of a model similar to the 1983 West German (Langbein, 1985) inquisitorial model, it should also be modified. First, under the 1983 West German model (Langbein, 1985), decision-makers are presumed to know the law, but under a modified approach, decision-makers may be expected to know the law in general, but they should also consider the submissions of the parties. The decision-makers are, after all, only human, and it is reasonably foreseeable that they could miss important points both on the law and the evidence. Therefore, the decision-makers, while leading cross-examination and the elicitation of evidence, should also seek the input from the parties as to whether evidence is missing. This could be achieved by an initial hearing in which there is an active discussion between the decision-maker and the parties, something in the nature of a “brainstorming” session, in which all avenues of relevant evidence are discussed. The point is to ensure as much as possible that nothing relevant is missed. Such a first hearing does not preclude an earlier pre-hearing conference held by a registrar or case-manager to discuss procedures and timelines, including identifying lay witnesses. Similarly, the tribunal should undertake the process of gathering public documents relevant to the issues, as under the 1983 West German model (Langbein, 1985).

Additionally, the need for experts may be identified at a first hearing, when the decision-maker chooses an appropriate expert from a list of publicly paid experts, particularly with respect to those regulatory regimes in which the need for experts is common. Again, the decision-maker may canvas the parties regarding any issues they may have with the experts, and the parties may also suggest their own expert(s) from the public list. Similarly, while lay witnesses may have been earlier identified at a pre-hearing conference, parties should be prepared to discuss what evidence

the lay witnesses possess and to provide contact information for the witnesses, at which point the tribunal, under the direction of the decision-maker or delegate, is then charged with the responsibility for summoning the witnesses in an institutional capacity.

Also, tribunal Rules should expressly permit decision-makers, at their discretion and based on the “best evidence” principle, to adjourn hearings to obtain more evidence or to admit evidence at the hearing itself that is readily available. Rules should similarly permit discretionary reconsiderations on the basis of new evidence without resorting to restrictive doctrines of law related to new evidence⁴¹ and/or *functus officio*.⁴² Rules should similarly permit written hearings to be converted to oral hearings based on the best-evidence principle, where necessary.

At the same time, decision-makers should consider the public interest and weigh the impact of the outcome on the parties versus the use of public resources to achieve the decision outcome. However, in my view, this factor should be given less weight overall than the best-evidence principle.

Summary of Recommendations in Table Format

As discussed, the inquisitorial approach involves a decision-maker who proactively identifies issues, gathers evidence and controls the proceedings and participation of the parties, and is largely characterized by the 1983 West German model. By contrast, an adversarial approach is such that each litigant presents his or her own case and attacks the opponent’s case, and the decision-maker decides the case solely on the evidence and arguments as presented by the parties.

⁴¹ For example, the *Liquor Control and Licensing Act*, 2015, s. 53.1(4)(b) regarding reconsiderations applies a restrictive approach by requiring applicants to demonstrate the original decision contains an error of law or that he or she has fresh evidence that was not available for the original hearing through the exercise of due diligence.

⁴² This would be required by statute, and this is not uncommon but not universal: *Chandler v. Alberta Association of Architects* (1989).

With these definitions in mind and in view of the responses to my research study, in Table 5 below I summarize some recommendations for how tribunals in B.C. could modify their own approaches so as to increase both procedural and distributive fairness and the perception of fairness among parties to administrative disputes. My references to a hybrid approach involve combined inquisitorial and adversarial features that are not clearly adopted or identified in the active-adjudication model.

Concern	Inquisitorial approach	Adversarial approach	Active adjudication	Recommended approach
Parties discouraged from proceeding.	Once a claim/defence is initiated, parties are largely assisted at the pre-hearing and hearing stages, which reduces party frustration.	Entails high potential for parties to be discouraged from proceeding: high cost of legal counsel and/or experts; intimidation by overbearing opposing counsel; delays and adjournments due to procedural and substantive legal complexity; delays due to counsel exploiting the extremes of “reasonable delay”; delays due to counsel advancing motions that may be justifiable and therefore may not attract negative cost consequences, but which are tactically calculated to delay proceedings – all of which are exacerbated for self-represented parties.	Parties may be assisted to some extent at pre-hearing and hearing stages. However, since parties may also be represented, pre-hearing tribunal assistance is probably reduced accordingly and so parties potentially face the same problems as under the adversarial model.	Inquisitorial. Active adjudication approach largely satisfactory but may be applied less rigorously if parties are represented so an inquisitorial structure is preferred.

Concern	Inquisitorial approach	Adversarial approach	Active adjudication	Recommended approach
Impediments to the best evidence being put before the decision maker.	Possibility that a decision-maker who bears the responsibility for eliciting all probative evidence could miss seeking some relevant evidence, which may not happen under adversarial approach in which parties and counsel are vigilant as to the evidence that best supports their case.	High likelihood that some probative evidence will not be tendered, especially where self-represented parties are involved.	Decision-maker positioned to request additional evidence and to grant adjournments if necessary to obtain that evidence.	Hybrid: Model should be sufficiently flexible to shift between approaches depending on degree of party representation. If parties are not represented, an inquisitorial model should be used at pre-hearing and hearing stages. If parties are represented, an active adjudication model should be used.
Lay witness bias.	Tribunal registrar or decision-maker calls witnesses who are considered impartial. This reduces potential for witness bias.	Parties call witnesses, who may be coached by parties or may present evidence in a manner favorable to the party calling them.	Parties generally call witnesses, meaning the same potential problems exist as under the adversarial model.	Inquisitorial. Witnesses should be determined by the tribunal (registrar and decision-maker) after an investigation into who the appropriate witnesses are.
Judicial bias.	Decision-makers may tend to be more biased toward a particular outcome than under the adversarial	Decision-makers may be more open to being appropriately persuaded than under an inquisitorial model.	May be a perception by one or other party that a decision-maker who actively elicits evidence from parties is	Hybrid: Potential for judicial bias under inquisitorial model may be reduced if decision-makers

Concern	Inquisitorial approach	Adversarial approach	Active adjudication	Recommended approach
	approach. ⁴³ There may also be an objective perception that certain lines of questions are biased for one party or the other.		biased in their favor.	seek submissions and input from the parties.
Cost of experts.	As officers of the court, experts are paid by public resources. Costs to the public are high, but when experts are necessary to resolve issues, they are guaranteed to be available for all parties which may lead to greater probability of fair outcomes. It must be acknowledged that increased availability does not guarantee expert competence and accuracy of assessment as is evident in multiple examples of discredited expert opinion at a later date.	Costs are born by the parties. Due to high costs, parties – especially self-represented ones for whom experts may be reluctant to provide services – may forgo retaining experts to their detriment. This may lead to unfair outcomes.	This model generally does not account for the cost of experts, although it appears to be consistent with an adversarial approach.	Inquisitorial. Experts should be public officers. Strain on public resources can be reduced by cost-sharing of single expert and by experts who are employed by the public service.
Expert bias and skewed opinions.	Less likely if experts are formally identified as officers of the courts and tribunals. However, this does not guarantee the elimination of bias or	Possibility of adversarial allegiance. This is partially offset by a decision-maker's discretion to accept all or part of either expert and/or to find a middle ground. However, the costs of this approach seem ultimately greater	Generally consistent with an adversarial approach.	Inquisitorial. Experts should be public officers.

⁴³ This concern is raised by Thibault and Walker (1975). See discussion at p. 15-16 of this paper regarding pre-formed bias and the tendency to judge too swiftly.

Concern	Inquisitorial approach	Adversarial approach	Active adjudication	Recommended approach
		than the alternative in which experts are appointed by the decision-maker.		
Opportunity for parties' input (voice) framing issues and making submissions /argument not before decision-maker.	Decision-makers are presumed to know the law. This means that some matters involving complex legal interpretation may result in the alternatives not being placed before the decision-maker if the decision-maker happens to overlook such argument.	If parties are represented, there is a high likelihood that all the alternative arguments will be presented in the case of complex legal issues. However, if one or more parties are self-represented, or represented by poorly-prepared counsel, there is a lower likelihood that all arguments will be presented than if the decision-maker ascertains them under an inquisitorial model.		Hybrid: Decision-makers are presumed to know the law, subject to submissions of parties especially on novel issues. Parties should be invited to make submissions. Similarly, parties should be invited to frame the issues and decision-makers should be flexible in modifying their own understanding, although they should frame the issues themselves prior to the hearing whether or not parties are represented.
Whether other public policy goals are being advanced.	A purely truth-seeking function may come at the cost of advancing other social goals such as public safety.	An adversarial approach may accommodate larger public policy goals by overriding the truth-seeking function, such as public welfare and safety.	Generally adversarial in nature.	Inquisitorial. Public policy goals should not be reflected in the truth-seeking function. They may, however, be reflected in appropriate penalties.

Concern	Inquisitorial approach	Adversarial approach	Active adjudication	Recommended approach
Efficient dispute resolution.	A purely truth-seeking function may be less efficient if it overrides settlement possibilities.	Adversarial approach may resolve a dispute more efficiently than an inquisitorial approach even in the absence of truth.	Generally appears to be adversarial in nature.	Inquisitorial. Settlement may be encouraged at a pre-hearing stage but should not be the adjudicator's concern once the hearing begins.
Optimal use of scarce public resources.	Higher costs to educate parties on procedures than under adversarial model; possibly greater delays if matters are adjourned to permit parties time to adduce further evidence.	Higher costs to parties and public purse due to party-initiated delays; may be cost savings if adjournments to permit parties to adduce more evidence is not permitted.	Adjudicators exercise discretion in evaluating the impact on public resources but should prioritize fairness over impact on public resources.	Active adjudication. Adjudicators should exercise discretion in evaluating the impact on public resources but should prioritize fairness over impact on public resources.
Opportunity to present additional evidence.	Typically allowed at all stages of the hearing, including after its conclusion.	Strict disclosure deadlines. No opportunity to present evidence after hearing is done, except when the evidence was not available by exercise of due diligence. Decision-maker barred by doctrine of <i>functus officio</i> from reopening hearing.	May be allowed.	Inquisitorial (by default), but opportunity may be restricted in certain circumstances.

Table 5. Summary of fairness concerns and how they are generally addressed under inquisitorial, adversarial, and active-adjudication approaches. The fourth column contains the writer's proposed approach for administrative tribunals in British Columbia.

18. Conclusion

It is largely uncontested that administrative tribunals in Canada are not well-suited to a purely adversarial system. Indeed, legislators in Canada have endorsed relaxed evidentiary requirements in order to resolve administrative disputes in a more expeditious and less costly manner in more accessible and less formalistic venues than the courts (*Quebec (Commission des droits de la personne et des droits de la jeunesse) v. Bombardier Inc. (Bombardier Aerospace Training Center)*, 2015, para 68).

In this respect, from the outset we may view the resolution of administrative disputes in Canada as presumptively non-adversarial in nature, at least insofar as enabling legislation recognizes these relaxed evidentiary requirements. This approach recognizes the need for flexibility and informality to accommodate the high prevalence of self-represented parties and the comparatively “petty” nature⁴⁴ of administrative disputes. This non-adversarial approach prevails despite American research that indicates a preference, at least among American and United Kingdom subjects⁴⁵ (whose preferences one might reasonably expect to also be found among Canadians), for an adversarial approach in general. Much of that research seems to represent American anti-inquisitorial bias and lawyer-centred protectionism that assumes parties are represented and therefore presents an inaccurate reflection of people’s perceptions of how procedural fairness is achieved.

Nonetheless, although administrative procedural and evidentiary requirements are typically more relaxed than civil court processes, there is a wide range of practices among tribunals in terms of fairness to the parties, accessibility, and truth-seeking functionality.

⁴⁴ “Petty” is used as Judge Pound did as it applies to administrative matters, as earlier discussed in this paper at p. 26 – 27.

⁴⁵ See p. 17 of this paper for discussion of these perspectives.

This paper argues that fairness in administrative proceedings largely ought to be premised upon a best-evidence principle. In this sense, if relevant evidence is not presented to or acquired by a decision-maker, incorrect decisions frequently follow, and justice is either not done or may be perceived by the parties or bystanders as not having been done. This view is also inherently critical of decisions that withstand judicial review on the basis that they are reasonable in light of the (incomplete) evidence before the decision-maker, particularly if more could reasonably have been done to ensure that all the relevant evidence was before the decision-maker. Decision-makers ought to strive for correct decisions lest they become less-disciplined in their truth-seeking function on the basis that their decisions are reasonable and therefore sustainable on judicial review.⁴⁶ In this way, the view posited here goes beyond the minimum that is legally required to achieve procedural fairness and advocates for a standard that is closer to one of correctness. Public policy ought to work in the interests of the public in ways that may go beyond legal minimums.

Similarly, this view goes beyond active-adjudication and is situated closer to the inquisitorial end of the spectrum, similar to the 1983 West German approach with some modifications, because it considers the truth-seeking function to be critical and philosophically more important than mere “problem solving” as observed by Green and Sossin (2013). By maintaining the primacy of truth-seeking, adjudicators naturally also engage in resolving impediments to truth-seeking; and problem solving is therefore subsumed within inquisitorial objectives.

In this paper, I have identified roughly where seven tribunals in British Columbia lie on the inquisitorial-adversarial spectrum. In general, these seven tribunals apply hybrid models, with

⁴⁶ A detailed analysis of the differences between correct and reasonable decisions and their legal implications is beyond the scope of this paper.

subtle but identifiable differences among them such that it is possible to differentiate their positions on the spectrum.

Despite being a small-scale study due to a low response rate, there is sufficient information to make some recommendations for changes in tribunal practice and procedure. In general, my assessment is that current tribunal practices conform to reasonable expectations of fairness. However, there is scope for tribunals in British Columbia, in general, to modify their practices so as to move closer to the inquisitorial end of the spectrum than current hybrid practices. This is done primarily by engaging publicly paid expert witnesses who are perceived to operate impartially; by facilitating the calling of lay witnesses so as to reduce pressures on witnesses to testify favorably for one party or another, and by being prepared to admit additional evidence during hearings not previously disclosed or by way of adjournments if the evidence is available.

I have not undertaken a detailed review of the trade-offs between the use of public resources, the impact on the parties and procedural fairness, but it is not obvious that the costs involved in activating the recommendations (i.e., publicly funded experts, contacting/summoning lay witnesses through the tribunal or public agency, and more liberal allowances for existing evidence not previously disclosed) outweigh the fairness concerns, and a more detailed analysis is warranted on these points.

Although I have not addressed considerations related to the training of adjudicators in this paper, a brief comment is warranted, given I am recommending that adjudication be undertaken in a manner that is more consistent with an inquisitorial approach. In order to ensure the success of an inquisitorial approach that involves actively engaged adjudicators, specialized training may be required. Such training calls for refined questioning techniques, active listening, empathy and sensitivity to a wide range of human cultures, demographics and social stratification. Adjudicators

who are able to demonstrate this type of skill ensure that their questions are presented in an unbiased manner so as to reduce the potential for parties to perceive the adjudicator as favouring one party over another.

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